

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 05/01/2026

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Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C23-02656
CASE NAME: MARIA ANGUIANO VS. JOHN BALQUIST
*HEARING ON MOTION FOR DISCOVERY TERMINATING SANCTIONS AGAINST PLAINTIFF CATALINA MARTINEZ
FILED BY: BETHEL ISLAND ESTATES MHC, LLC
TENTATIVE RULING:

The unopposed motion of Defendants Bethel Island Estates MHC, LLC and Monte Christo Communities, LLC for terminating sanctions against Plaintiff Catalina Martinez is granted. Plaintiff Catalina Martinez's Complaint against

these Defendants is dismissed with prejudice in its entirety.

2. 9:00 AM CASE NUMBER: C23-02656
CASE NAME: MARIA ANGUIANO VS. JOHN BALQUIST
HEARING IN RE: JOINDER TO MOTION FOR TERMINATING SANCTIONS AGAINST PLAINTIFF
CATALINA MARTINEZ
FILED BY: BALQUIST, JOHN
TENTATIVE RULING:

Defendants John Balquist, as Trustee of Knute N. Hylen and Ellen Bricker Hylen Exemption Trust Under 1987 Amended and Restated Declaration of Trust, Charles William Mahler, Individually and as Trustee of the Charles William Mahler and Gloria May Mahler Common Revocable Living Trust, joined in the unopposed motion of Defendants Bethel Island Estates MHC, LLC and Monte Christo Communities, LLC for terminating sanctions against Plaintiff Catalina Martinez is granted.

Plaintiff Catalina Martinez's Complaint against Defendants John Balquist, as Trustee of Knute N. Hylen and Ellen Bricker Hylen Exemption Trust Under 1987 Amended and Restated Declaration of Trust, Charles William Mahler, Individually and as Trustee of the Charles William Mahler and Gloria May Mahler Common Revocable Living Trust is dismissed with prejudice in its entirety.

3. 9:00 AM CASE NUMBER: C24-00586
CASE NAME: GURPREET SINGH VS. JASPAL SINGH
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY: SINGH, JASPAL
TENTATIVE RULING:

Before the Court is Defendants Jaspal Singh and Manpreet Singh's Motion for Summary Judgment ("MSJ"). The Complaint alleges two causes of action: (1) breach of contract, and (2) common counts.

Plaintiff's opposition was due on or before April 10, 2026. As of the drafting of this Tentative Ruling, which is well beyond that date, no opposition has been filed. Even though the instant MSJ is unopposed, the Court cannot grant summary judgment unless Defendant meets its initial burden. (See *Johnson v.*

Superior Court (2006) 143 Cal.App.4th 297, 305.) The scope of the defendant's initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal. App. 3d 1, 18.)

For the following reasons, Defendants' Motion for Summary Judgment is **denied**.

Standard

Summary judgment is proper if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc. § 437c(c).) The "moving papers must demonstrate that 'material facts' are undisputed and that the movant is entitled to judgment as a matter of law. (*Id.* at (b)(1), (c).) "The moving party's papers are strictly construed whereas those of the opposing party are liberally construed, with all doubts about the granting of the motion resolved in favor of the opposing party." (*Y.K.A. Industries, Inc. v. Redevelopment Agency of City of San Jose* (2009) 174 Cal.App.4th 339, 352.)

The moving party "bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; *if* he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.'" (*Id.* at 353 quoting *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, italics in original.) Thus, a defendant moving for summary judgment "must make a prima facie showing, i.e., 'he must present evidence that would require a reasonable trier of fact *not* to find any underlying material fact more likely than not—otherwise, *he* would not be entitled to judgment *as a matter of law*, but would have to present *his* evidence to a trier of fact.'" (*Ibid.* quoting *Aguilar*, supra, 174 Cal.App.4th at 851.)

Summary Judgment versus Summary Adjudication

Defendants' motion is styled as a "Motion for Summary Judgment." (emphasis added.) The notice of motion indicates that the Defendants "move the Court for summary judgment" on the ground that Plaintiff's "claim is barred by the statute of limitations set forth in CCP 337(a) (*the four year written-contract statute of*

limitations.)” (Notice at 2:2-5.)

Section 437c(f) pertains to motions for summary adjudication which “may be made by itself or as an alternative to a motion for summary judgment....” (Code Civ. Proc. 437c (f)(2).) Here, as made clear above, Defendants only seek summary judgment. There is no reference or request for a motion for summary adjudication. “[A] court may not properly grant summary adjudication of issues when the notice of motion was only for summary judgment.” (*Jimenez v. Protective Life Ins. Co.* (1992) 8 Cal.App.4th 528, 532 citing *Gonzalez v. Superior Court* (1987) 189 Cal.App.3d 1542.)

“It is elemental that a notice of motion must state in writing the ‘grounds upon which it will be made.’” (*Gonzalez*, 189 Cal.App.3d at 1545 citations omitted.) “Only the grounds specified in the notice of motion may be considered by the trial court.” (*Ibid.*) “This rule has been held to be especially true in the case of motions for summary adjudication of issues.” (*Ibid.*)

As Defendants’ motion is limited to one for summary judgment, it can only be granted if Defendants show that “the action has no merit,” i.e. that every one of the causes of action is without merit. If a single cause of action is viable, the entire motion for summary judgment fails. (Code Civ. Proc. § 437c(c).); *All Towing Services LLC v. City of Orange* (2013) 220 Cal.App.4th 946, 954 [“Summary judgment is proper only if it disposes of the entire lawsuit.”])

Analysis

Breach of Contract

Defendants’ sole basis for alleging that Plaintiff’s breach of contract fails is that it is untimely.

Plaintiff and Defendant Jaspal Singh entered into a written Business Purchase Agreement (“BPA”) on November 9, 2019. (UMF 1.) Under the terms of the BPA, Plaintiff sold his business, Cigar Loft LLC, to Jaspal Singh. (UMF 1.) The total purchase price for the Cigar Loft was \$215,000. (UMF 2.) The first \$100,000 was to be paid upon signing of the BPA. (UMF 2.) The remaining \$115,000 was to be paid upon transfer of the lease for the property where Cigar Loft was located. (*Ibid.*)

On February 27, 2020, Plaintiff’s attorney sent a letter to Jaspal (sic) Singh that the parties agreed that a partial payment of \$25,000 would be paid by Jaspal

(sic) Singh on February 25, 2020, but such payment had not been paid. (UMF 5.) On March 2, 2020, Plaintiff's attorney re-sent the same letter but with a correction to indicate it was sent to Jaspal Singh (correct spelling of first name.) (UMF 7.)

Plaintiff ultimately filed his Complaint in this matter on March 5, 2024. (UMF 8.)

"A cause of action for breach of a written contract is subject to a four-year statute of limitations." (*Eloquence Corp. v. Home Consignment Center* (2020) 49 Cal.App.5th 655, 661.) "As a general rule, the statute of limitations begins to run 'when a controversy is ripe – that is, when all of the elements of a cause of action have occurred and a suit may be maintained.'" (*Ibid.* quoting *Armstrong Petroleum Corp. v. Tri-Valley Oil & Gas Co.* (2004) 116 Cal.App.4th 1375, 1388.)

"To prevail on a breach of contract cause of action, [plaintiff] must establish (1) a contract; (2) its performance or excuse for nonperformance; (3) breach; and (4) damages." (*Stockton Mortgage, Inc. v. Tope* (2014) 233 Cal.App.4th 437, 447.) "Any nonperformance of a duty under a contract when performance is due is a breach. This includes defective performance as well as an absence of performance; defective performance can be inadvertent as well as intentional, and the duty can be imposed by the court as well as by a promise stated in the agreement." (*Linden Partners v. Wilshire Linden Assoc.* (1998) 62 Cal.App.4th 508, 531-32.)

Here, Defendant Jaspal Singh asserts that statute of limitations on the breach of contract cause of action began to run on February 26, 2020 – that date Jaspal allegedly breached the contract by failing to make the \$25,000 payment. As such, Defendant argues that "Plaintiff had four years from that date – until February 26, 2024 – to file suit." (MSJ at 6:2.) Plaintiff did not file the Complaint until March 5, 2024 – eight days too late.

While the above analysis might be correct for most periods of time, the COVID pandemic of 2020 changes the analysis for how the statute of limitations is calculated.

"In response to the COVID-19 pandemic, the Judicial Council adopted a series of emergency rules effective April 6, 2020. As initially adopted, Emergency rule 9 tolled 'the statute of limitations [for] civil causes of action from April 6, 2020, ... until 90 days after the Governor declares that the state of emergency related to the COVID-19 pandemic is lifted.'" (*People v. Financial Casualty & Surety, Inc.*

(2021) 73 Cal.App.5th 33, 38.) Emergency rule 9 was later amended to read, in pertinent part:

“Notwithstanding any other law, the statute of limitations and repose for civil causes of action that exceed 180 days are tolled from April 6, 2020, until October 1, 2020.” (COVID-19 Emergency Rule 9(a).)

In other words, Emergency Rule 9(a) “tolled unexpired limitations periods from April 6, 2020, until October 1, 2020.” (*Ross v. Seyfarth Shaw LLP* (2023) 96 Cal.App.5th 722, 743.)

“A tolling provision suspends the running of a limitations period.” (*Shalabi v. City of Fontana* (2021) 11 Cal.5th 842, 845.) “In other words, ‘the limitations period stops running during the tolling event, and begins to run again only when the tolling event has concluded. As a consequence, the tolled interval, no matter when it took place, is tacked onto the end of the limitations period, thus extending the deadline for suit by the entire length of time during which the tolling event previously occurred.’” (*Committee for Sound Water & Land Development v. City of Seaside* (2022) 79 Cal.App.5th 389, 403 quoting *Lantzy v. Centex Homes* (2003) 31 Cal.4th 363, 370-71.)

The four-year statute of limitations for breach of contract “exceeds 180 days.” As such, it falls within the purview of Emergency Rule 9. Thus, when counting the time relevant for calculating the statute of limitations, one will not include the 178 days from April 6 to October 1, 2020.

The alleged breach of contract in this matter occurred on February 26, 2020 – before Emergency Rule 9 went into effect. Thus, the entire 178 days is added onto the four-years such that the applicable statute of limitations is approximately 4 ½ years. Accordingly, even under Defendant’s theory as to when the breach occurred, Plaintiff had until August 22, 2024 (February 26, 2020 + 4 years + 178 days), to initiate his breach of contract claims against Defendant Jaspal Singh. As noted above, the Complaint was filed on March 5, 2024 – well before the expiration of the statute of limitations.

Based on the above, Defendants’ MSJ directed toward the breach of contract cause of action is **denied**.

Other Causes of Action

As Defendants' motion is limited to one for summary judgment, it can only be granted if Defendants show that "the action has no merit," i.e. that every one of the causes of action is without merit. If a single cause of action is viable, the entire motion for summary judgment fails. (Code Civ. Proc. § 437c(c).); *All Towing Services LLC v. City of Orange* (2013) 220 Cal.App.4th 946, 954 ["Summary judgment is proper only if it disposes of the entire lawsuit."])

As Defendants have failed to meet their burden regarding the breach of contract cause of action, the Court need not analyze the common counts cause of action. Because there is a single viable cause of action, the motion for summary judgment must be denied in its entirety.

Conclusion

Defendants' Motion for Summary Judgment is **denied**.

4. 9:00 AM CASE NUMBER: C24-01590

CASE NAME: TIMOTHY CLANCY VS. ANTHONY JURADO

*HEARING ON MOTION IN RE: PROTECTIVE ORDER

FILED BY: JURADO, ANTHONY

TENTATIVE RULING:

Notice to withdraw the motion was filed. Hearing vacated.

5. 9:00 AM CASE NUMBER: C24-01666

CASE NAME: NIRAJ GANDHI VS. SAN RAMON REGIONAL MEDICAL CENTER

HEARING ON DEMURRER TO: 3RD AMENDED COMPLAINT

FILED BY: SAW, AMAN, MD

TENTATIVE RULING:

Before the Court is Defendants Aman Saw, M.D., John Muir Health, John Muir Cardiovascular Medical Group, Inc.'s (collectively "JMH Defendants") demurrer. The demurrer relates to Plaintiff Niraj Gandhi's ("Plaintiff" or "Gandhi") Third Amended Complaint for (1) Medical Negligence, (2) Fraud and Misrepresentation, and (3) Intentional Infliction of Emotional Distress.

JMH Defendants demurrer to Plaintiff's Third Amended Complaint in its entirety on the grounds that the Doe amendment adding them does not relate back to

the Initial Complaint, rendering the Medical Negligence and IIED claims untimely, and that the Third Amended Complaint otherwise fails to state facts sufficient to constitute any of the causes of action against them.

Plaintiff, who is an *in propria persona* litigant, opposes Defendants' demurrer on the grounds that the Doe amendment relates back, the statute of limitations does not bar claims due to delayed discovery and fraudulent concealment, Plaintiff has adequately pleaded all causes of action, and JMH Defendants failed to properly engage with the meet-and-confer process.

Defendants' demurrer is **SUSTAINED** as to all three causes of action **WITH LEAVE TO AMEND**.

I. Request For Judicial Notice

In support of their demurrer, JMH Defendants request judicial notice of the Initial Complaint in this litigation and each of the three subsequent amendments, as well as the Doe Amendment filed by Plaintiff November 14, 2025. (Request for Judicial Notice Filed ISO Demurrer to Third Amended Complaint ("RJN"), Exhibits A-E.)

Each of these items is a record of this Court. Judicial notice of the records of "any court of this state" is authorized under Evidence Code section 452(d). (Evid. Code, § 452(d)(1).) The Court takes judicial notice of the existence of identified court records, the fact that they were filed or issued, the dates reflected therein, the language used in those documents, and the orders and rulings they contain, but not of the truth of any hearsay statements or disputed factual matters asserted within them. (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882; *Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375.) Only matters that are reasonably beyond dispute are subject to judicial notice. (*Tenet Healthsystem Desert, Inc. v. Blue Cross of California* (2016) 245 Cal.App.4th 821, 835.)

The unopposed request for judicial notice is **GRANTED**.

II. Factual Allegations and Background

This case arises out of a dispute over the alleged loss of medical records.

Niraj Gandhi underwent a left heart catheterization and angiogram performed by cardiologist Dr. Aman Saw (“Dr. Saw”) at the San Ramon Regional Medical Center (“SRRMC” or “the hospital”) Catheterization Lab (“Cath Lab”) on November 24, 2022. (Third Amended Complaint (“TAC”) at 2:24-25; 5:1-7:5.; Ex. A, B.) Immediately after the procedure, Gandhi asked to be provided with the images and video captured during the procedure and Dr. Saw told him the hospital would produce it on a CD with his discharge packet. (*Id.* at 7:5-11.) Gandhi did not receive a CD upon discharge, however. (*Ibid.*)

On November 25, 2022, Gandhi sent Dr. Saw a message following up about the missing CD and received no reply. (TAC at 7:12-15.) At a December 2, 2022, follow-up appointment with Dr. Saw, Gandhi asked Dr. Saw to show him the images and video from the procedure, but Dr. Saw explained that the images and video were not accessible from his office, and that only SRRMC had access to them, so Gandhi would need to contact the hospital to obtain them. (*Id.* at 7:19-24.)

On November 28, 2022, and again on December 1, 2022, Gandhi called the hospital’s medical records department to inquire about the CD. (TAC at 7:16-18.) In his attempt to obtain the images and video from the angiogram procedure performed at SRRMC, he picked up a CD from the hospital on December 7, 2022, and another on December 15, 2022. (TAC at 8:1-6.) In both instances, the discs he received did not contain the images or video from the procedure. (*Id.* at 8:1-14.)

Gandhi ultimately sought a second opinion on his heart condition from Dr. Ramesh Veeragandham (“Dr. Veeragandham”) in June of 2023. (TAC at 3:12-13; 8:20-21.) Dr. Veeragandham advised Plaintiff that in order for him to determine whether an additional procedure was necessary, he would need to review the angiogram imaging, and, in its absence, a repeat procedure would be required. (*Id.* at 20:1-6) Dr. Veeragandham attempted to access the CDs Plaintiff provided from the hospital and, finding no images or video, Dr. Veeragandham contacted

the Cath Lab at SRRMC to seek the imaging from the hospital directly. (TAC at 8:20-27.) Dr. Veeragandham made the following note July 6, 2023: “I tried to access the films in San Ramon but somehow there was no data. After back-and-forth, it was determined that the films were lost permanently.” (TAC at 9:1-6.)

Gandhi contacted Dr. Saw on July 7, 2023, again asking for his help in obtaining the images and video from the procedure. (TAC at 9:7-15.) Dr. Saw replied: “I am quite surprised that the hospital had lost your records. ... The hospital medical record staff is trying to figure out what happened.” (TAC at 9:7-15.)

Gandhi then sent a subsequent message to Dr. Saw on July 14, 2023, “indicating to him how much pain and suffering [he] was going through because of someone else’s mistakes” and asking for the names of employees at SRRMC’s Cath Lab. (*Id.* at 9:18-22.)

On July 17, 2023, Gandhi received a phone call from Giovana Meza, PA-C, from John Muir Cardiovascular Services, who said she had spoken to Cath Lab staff and the Cath Lab supervisor, Mike Miller, regarding the missing records. (TAC at 9:23-25.) She told Gandhi that the computer system that stores and backs up images for the Cath Lab had “gone down” on the day of Gandhi’s procedure, causing the images to not be saved. (*Id.* at 9:23-28.) According to the Cath Lab staff, the problem was escalated to the computer company and the corporate hospital system, Tenet. (*Id.* at 3:26-4:1.)

On August 9, 2023, Gandhi underwent a second left heart catheterization, this time performed at John Muir Hospital in Concord by Dr. Christopher Chen. (TAC at 10:6-8.) Two days later he began to feel a “very strong burning sensation and numbness in [his] thigh and upper leg around the incision from where the catheterization was performed.” (*Id.* at 10:11-15.) He was subsequently diagnosed with a femoral nerve injury, likely caused by the second angiogram. (*Id.* at 4:8-14, 10:22-11:2.)

Gandhi filed the instant suit on July 1, 2024. SRRMC demurred and moved to strike, prompting a First Amended Complaint. Two subsequent pairs of demurrers and motions to strike by SRRMC led to second and third amended

complaints; the operative Third Amended Complaint was filed September 5, 2025.

On January 30, 2026, the Court overruled in part and sustained in part a fourth motion to strike from SRRMC. The Court found insufficient grounds to strike Gandhi's Third Amended Complaint in its entirety as untimely, but sustained the motion in part on the grounds that he failed to state facts sufficient to state a claim for punitive damages against SRRMC.

Gandhi filed a Doe amendment adding Aman Saw, M.D., John Muir Cardiovascular Services, and John Muir Health as Does one through three, respectively, on November 14, 2025. JMH Defendants filed the instant motion and its accompanying motion to strike on January 20, 2026.

III. Meet and Confer

California Code of Civil Procedure section 430.41(a) requires the parties to meet and confer in good faith before the filing of a demurrer in an attempt to informally resolve the objections raised therein.

Here, counsel for the JMH Defendants filed a declaration stating that, after obtaining a 30-day extension of time in which to file a responsive pleading, defense counsel and Plaintiff participated in a telephonic conference on January 20, 2026, during which they discussed relation-back, statute of limitations, and fact-pleading issues raised by the instant demurrer. (Declaration of Patrick Goonan ISO Demurrer ("Goonan Dec.") ¶¶ 5-7.)

Plaintiff, in turn, asserts the meet and confer process was not conducted in good faith because defense counsel did not initiate contact within the extension period, did not provide the promised detailed written statement before the call, waited until the day the responsive pleading was due to discuss the issues, and "no meaningful attempt to resolve issues was made." (Declaration Re: ISO Opposition to Demurrer to Third Amended Complaint ("Gandhi Dec.") ¶¶ 5-9.) Defense counsel likewise acknowledges the office intended to send a more detailed statement before the call but was "unable to complete" it. (Goonan

Dec. ¶ 6(e).)

The record therefore suggests the meet-and-confer process was imperfect. However, the parties did in fact confer telephonically before the demurrer was filed, and any insufficiency in the meet-and-confer process is not grounds to overrule a demurrer. (Code Civ. Proc., § 430.41 (a)(4).) Accordingly, the Court considers the instant motion on the merits.

IV. Legal Standard

A demurrer is properly sustained when "[t]he pleading does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10(e).) In ruling on a demurrer, the court assumes the truth of properly pleaded factual allegations, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.)

A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.)

The complaint must be "liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc. § 452.) "[I]f it appears that the plaintiff is entitled to any relief against the defendant, the complaint will be held good, even though the facts may not be clearly stated." (*Community Cause v. Boatwright* (1981) 124 Cal.App.3d 888, 896.)

Self-representation is not a ground for exceptionally lenient treatment. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985.) *Pro per* litigants are not entitled to special treatment and are held to the same rules of procedure as an attorney. (*Bai v. Yip* (2024) 107 Cal.App.5th 188, 197.)

V. Analysis

As an initial matter, Plaintiff's opposition contains repeated citation problems.

The briefing relies on numerous authorities for broad propositions concerning demurrer practice, relation back, tolling, and pleading standards; many, if not most, of those citations are inaccurate, inapposite, or materially overstate the holdings of the cited cases. The Court therefore does not treat Plaintiff's citation string as independently persuasive and instead evaluates each issue under the governing authorities and the pleaded facts.

A. Relation Back

A plaintiff who adds a new defendant after the limitations period ordinarily cannot rely on the filing date of the original complaint. (*Woo v. Superior Court* (1999) 75 Cal.App.4th 169, 176.) But under Code of Civil Procedure section 474, an amendment substituting a Doe defendant will relate back if the plaintiff was genuinely ignorant, at the time of the filing, of the defendant's identity or of facts giving rise to the defendant's liability. (Code Civ. Proc., § 474; *Woo, supra*, 75 Cal.App.4th at 176-177; *Austin v. Massachusetts Bonding & Ins. Co.* (1961) 56 Cal.2d 596, 599; *GM Corp. v. Superior Court* (1996) 48 Cal.App.4th 580, 593-594.)

i. California Code of Civil Procedure Section 474

Section 474 is construed liberally, and the relevant inquiry is what facts the plaintiff actually knew at the time the original complaint was filed, not whether the plaintiff exercised reasonable diligence or appreciated the legal significance of those facts. (*GM Corp, supra*, 48 Cal.App.4th at 588, 593-594; *Irving v. Carpentier* (1886) 70 Cal. 23, 26; *Hahn v. New York Air Brake LLC* (2022) 77 Cal.App.5th 895, 900.) Still, the claimed ignorance of the defendant's identity in the original complaint must be real and in good faith, section 474 does not apply where the omission is "merely a subterfuge for avoiding the requirements of section 474" or where plaintiff already knew enough facts to state a cause of action against the later-added defendant, even if additional details were learned later. (*Woo, supra*, 75 Cal.App.4th 169, 177; see also *Scherer v. Mark* (1976) 64 Cal.App.3d 834, 841; *Dover v. Sadowinski* (1983) 147 Cal.App.3d 113, 117-118.)

The attempt to file an amendment under section 474 should be honest and in good faith. The question of the plaintiff's good faith in this regard is for the determination of the trial court. [Citations.] The pivotal question in this regard is 'did plaintiff know *facts*' not 'did plaintiff know or believe that she had a cause of action based on those facts?'

(*Scherer, supra*, 64 Cal.App.3d at 841.)

i. Dr. Saw

Here, the Initial Complaint makes clear that Plaintiff was aware, before filing suit, of Dr. Saw's role and of the involvement of his office staff in the events underlying the action.

The first sentence of Gandhi's "Facts and Timeline" section in his Initial Complaint states that "[o]n Nov 24th 2022, the [sic] I had a Left Heart Catheterization (angiogram) performed by Dr. Aman Saw at the San Ramon Regional Medical Center (SRRMC)." (Initial Complaint ("Initial Compl.") at 2:13-14.) Gandhi sent a message to Dr. Saw the following day, according to the Initial Complaint, inquiring after the images from the angiogram, which had not been provided after the procedure as promised. (*Id.* at 2:16-19.) The Initial Complaint then explains that Gandhi took CDs subsequently provided to him by SRRMC to both his primary care physician and Dr. Saw in a bid to access the images purportedly on those discs, but neither doctor's office was able to access the images and "I was told since the procedure was done at the hospital it was the hospital's responsibility to provide the images to me not theirs." (*Id.* at 3:9-11.)

After seeking a second opinion from another cardiologist, Gandhi reached out again to Dr. Saw's office on July 17, 2023, in another attempt to enlist Dr. Saw's help in obtaining the lost imaging from the November 2022 angiogram.

"Giovana Meza, from Dr. Saw's office called me to inform me that she had spoken several times with the Cath Lab staff and the images were not obtainable." (Initial Compl. at 3:27-28.) The Initial Complaint goes on to allege

that “[f]or almost a year, I was lied to by the Defendant’s staff.” (*Id.* at 5:4-5.)

These allegations show Plaintiff already knew, when the Initial Complaint was filed, of facts connecting Dr. Saw and his office to the missing-imaging issue. On this record, Plaintiff has not shown genuine ignorance within the meaning of section 474.

i. John Muir Cardiovascular Services and John Muir Health

The question is somewhat closer as to John Muir Cardiovascular Services and John Muir Health, because the Initial Complaint does not discuss those entities in the same detail as it discusses Dr. Saw and his office. Nevertheless, the Initial Complaint does not suggest Gandhi was wholly ignorant of the John Muir entities when he filed suit, either. He expressly alleged the following in his Initial Complaint:

Since by this point I had lost all my trust in the John Muir Health Network to provide proper medical care I went to the Cardiologists at Stanford Medical who were not satisfied with the treatment and Angiogram reports hence they had to perform yet another Angiogram and they continue to treat me now.

(Initial Compl. at 4:16-19.)

This indicates that Gandhi understood, before filing suit, that the care he received from Dr. Saw was connected in some way to the “John Muir Health Network. The Initial Complaint already alleged Plaintiff knew Dr. Saw performed the angiogram, that Plaintiff communicated with Dr. Saw about the missing images, and that Dr. Saw’s office later communicated with Cath Lab staff regarding those same missing images. Thus, to the extent Plaintiff later added John Muir Cardiovascular Services and John Muir Health based on those same underlying events, the present record does not itself show genuine ignorance of their connection to the case when the Initial Complaint was filed. Section 474 turns on a plaintiff’s actual ignorance of the relevant facts at the time of filing,

not on later refinement of theories or later appreciation of the legal significance of known facts. (*Hahn, supra*, 77 Cal.App.5th at 900; *Scherer, supra*, 64 Cal.App.3d at 841; *Dover, supra*, 147 Cal.App.3d at 117-118.)

Accordingly, on the present record, Gandhi has not shown entitlement to relation back under section 474 as to John Muir Cardiovascular Services and John Muir Health.

/. No New Liability Facts

Plaintiff in his Doe Amendment states as follows:

Plaintiff was ignorant of the true names and capacities of these defendants at the time of filing the Third Amended Complaint. Plaintiff discovered the facts giving rise to a claim against these defendants during discovery, including but not limited to, the certified deposition of Mike Miller on September 24, 2025, and an investigation into the corporate relationship between AMAN SAW, M.D., JOHN MUIR CARDIOVASCULAR SERVICES, and, JOHN MUIR HEALTH.

(Doe Amendment ¶4.)

Plaintiff's opposition similarly alludes to newly discovered facts arising from the Miller Deposition and subsequent investigation, asserting that these facts establish the JMH Defendants' role in the events at issue and support relation back.

Plaintiff discovered Defendants' role during the September 24, 2025 deposition and subsequent investigation. Prior representations by Dr. Saw attributed responsibility solely to SRRMC. These allegations establish genuine ignorance, and relation back applies. (*Smeltzley v. Nicholson Mfg. Co.* (1977))

18 Cal.3d 932, 937.)

(Opposition Filed Re: Demurrer to Third Amended Complaint; MPA (“Opp. Dem.”) at 7:17-21.)

But Plaintiff does not identify what the newly-discovered facts were, does not explain how they differed from the facts already alleged in the Initial Complaint, and does not show that they were the first facts connecting John Muir Health to the events at issue. On this record, a general reference to deposition testimony and a subsequent investigation is too vague to establish genuine ignorance within the meaning of section 474.

In addition, Plaintiff’s assertion of ignorance is difficult to reconcile with the allegations of the Initial Complaint. Plaintiff expressly identified Dr. Aman Saw as the provider who performed his angiogram and referenced Both Dr. Saw and the John Muir Health Network generally in connection with his post-procedure care. These allegations demonstrate that Plaintiff was aware of both the relevant individuals and the associated health system at the time of filing, even if he had not yet fully developed a legal theory against them. Section 474 does not apply where a plaintiff knew the facts giving rise to a cause of action but simply failed to name the defendant.

Moreover, the cited authority does not help Plaintiff. *Smeltzley* neither addresses the section 474 question presented here – whether Plaintiff was genuinely ignorant of facts giving rise to a cause of action against the JMH Defendants at the time of the Initial Complaint – nor does it stand for the proposition that Plaintiff’s unique allegations establish genuine ignorance such that relation back applies.

Thus, on this record, Plaintiff fails to demonstrate that he is entitled to rely on section 474 for the purposes of his Doe amendment.

/. Statutes of Limitation

Because Plaintiff has not shown relation back under Code of Civil Procedure section 474 as to the JMH Defendants, the timeliness of the claims against

those Defendants is measured from the date they were added, November 14, 2025, rather than from the filing of the Initial Complaint.

To the extent that Plaintiff asserts a claim for Medical Negligence against healthcare providers, that claim is governed by Code of Civil Procedure section 340.5, which requires commencement within three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first. (Code Civ. Proc., § 340.5.)

Here, the first time Plaintiff alleges he was explicitly told that the imaging was not recorded during his angiogram procedure was July 17, 2023, when Dr. Saw's PA, Giovana Meza, told Gandhi that the computer system that stores and backs up images for the Cath Lab had "gone down" on the day of Gandhi's procedure, causing the images to not be saved. (TAC at 9:23-28.) Thus, Gandhi's claim of Professional Negligence against the JMH Defendants accrued July 17, 2024, one year after he was made aware of that fact and over a year before Gandhi sought to add the JMH Defendants.

Gandhi's claim for Intentional Infliction of Emotional Distress ("IIED") is governed by Code of Civil Procedure section 335.1; under that statute, an IIED claim is subject to a two-year limitations period. (Code Civ. Proc., § 335.1.)

Here, Gandhi alleged he sent a message to Dr. Saw on July 14, 2023, "indicating to [Dr. Saw] how much pain and suffering [Gandhi] was going through because of someone else's mistakes" and asking for the names of employees at the Cath Lab. (TAC at 9:18-22.) And, as noted *ante*, he was first explicitly made aware of the fact that the computer system had gone down during his procedure, on July 17, 2023. Using either date, the limitations period ended in July of 2025, four months before Plaintiff filed his Doe Amendment seeking to add the JMH Defendants.

Absent relation back or some other adequately pleaded basis for tolling or delayed accrual, both the Professional Negligence and IIED claims appear

untimely as against the JMH Defendants. The Court is skeptical that Plaintiff can cure this defect, given the facts already alleged in the Initial Complaint. Nonetheless, because this is the first demurrer directed to the later-added defendants and Plaintiff may be able to allege a genuinely new fact supporting section 474, leave to amend is accordingly granted.

Because leave to amend will be granted on the timeliness issue, the Court briefly addresses JMH Defendants' remaining arguments related to what they contend are inadequately pled causes of action.

B. Intentional Infliction of Emotional Distress ("IIED")

Even, assuming *arguendo*, that Gandhi could allege facts sufficient to invoke section 474, the Third Amended Complaint still fails to state facts sufficient to constitute a cause of action for IIED.

A claim for IIED requires (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.) For conduct to be outrageous it must be so extreme as to exceed all bounds of that usually tolerated in a civilized community. (*Ibid.*) IIED liability "does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities." (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1051.)

The Third Amended Complaint alleges JMH Defendants failed to provide Gandhi with the angiogram imaging, repeatedly told him the records were on the CDs or otherwise obtainable, and caused delay, frustration, distress, and further medical consequences. Accepting those allegations as true, they may support an inference of bureaucratic dysfunction, recordkeeping failures, or repeated misinformation, but they do not, as pleaded, rise to the level of conduct extreme and outrageous as to exceed all bounds of decency usually tolerated in a civilized community. (*Christensen, supra*, 54 Cal.3d at 903.) At most, these allegations describe mishandling of records and repeated inaccurate

assurances, not the sort of atrocious or utterly intolerable conduct required for IIED.

The Third Amended Complaint does not allege facts showing that JMH Defendants acted with the intention of causing Gandhi emotional distress, as opposed to acting carelessly or incompetently in handling or communicating about angiogram imaging. (*Davidson v. City of Westminster* (1982) 32 Cal.3d 197 [plaintiff failed to state a claim for IIED because defendants lacked intent to cause plaintiff harm where defendant police officers failed to intervene or protect plaintiff when they observed an assault suspect attack and stab her in a public laundromat while defendant police officers had the premises under surveillance].)

Plaintiff argues in his opposition that

At the pleading stage, [JMH Defendants'] course of conduct plausibly exceeds all bounds tolerated in a civilized society" and that "[t]he doctor-patient relationship is strictly governed by a duty of absolute candor. A patient entrusts a cardiologist with their life and rightfully expects complete, unvarnished honesty regarding their own medical records. For a medical professional and healthcare facility to actively deceive a vulnerable cardiac patient about the existence of their surgical imaging is the very definition of extreme and outrageous conduct.

(Opp. Dem. at 10:23-11:2.)

For these propositions Gandhi cites *Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050, and *Bundren v. Superior Court* (1983) 145 Cal.App.3d 784, 789. However, neither of these cases stands for the above propositions.

Hughes states the general rule governing outrageous conduct stated *ante*; it does not involve deception by medical providers regarding surgical imaging, and

it does not hold that comparable conduct is outrageous as a matter of law. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050-1051.) *Bundren*, meanwhile, involved abusive post-treatment billing and collection conduct by hospital staff, not concealment of surgical imaging, and it likewise does not announce the categorical rule that Gandhi attributes to it. (*Bundren v. Superior Court* (1983) 145 Cal.App.3d 784, 789.)

Accordingly, on the record as presently alleged, the elements of IIED are not met and, as such, the demurrer is **SUSTAINED WITH LEAVE TO AMEND**.

C. Medical Negligence

Even, assuming *arguendo*, that Gandhi could allege facts sufficient to invoke section 474, the Third Amended Complaint still fails to state facts sufficient to constitute a cause of action for Medical Negligence.

Medical Negligence is a form of Negligence. (*Massey v. Mercy Medical Center Redding* (2009) 180 Cal.App.4th 690, 694; *Flowers v. Torrance Memorial Hospital Medical Center* (1994) 8 Cal.4th 992, 997-1001.) Plaintiffs must make a showing of four elements to support a claim for Negligence: (1) the defendant had a legal duty of care to the plaintiff; (2) the defendant breached that duty; (3) the plaintiff suffered an injury because of the defendants' breached duty; and (4) damages. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 141.)

A medical provider is negligent "if he or she fails to meet the standard of care—that is, fails to use the level of skill, knowledge, and care that a reasonably careful [medical provider] would use in similar circumstances." (*Massey, supra*, (2009) 180 Cal.App.4th at 694.) "Duty of care in a malpractice action "can only be proved by expert testimony, unless the circumstances are such that the required conduct is within the layperson's common knowledge." (*Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 968.)

Here, the Third Amended Complaint alleges, in substance, that JMH Defendants failed to provide or preserve angiogram images, repeatedly told Gandhi the

images were available on CDs or were otherwise obtainable, and therefore caused delay, frustration, and further medical consequences. But those allegations do not identify facts showing how any individual JMH Defendant breached the applicable professional standard of care. As pleaded, the allegations describe recordkeeping failures, inaccurate assurances, or administrative mishandling of records, rather than facts a breach of the applicable professional standard of care. (*Massey, supra*, (2009) 180 Cal.App.4th at 694.)

The Third Amended Complaint also does not adequately allege causation. Although Gandhi alleges delay and further injury, he does not plead nonconclusory facts showing that any act or omission by JMH Defendants was a substantial factor in causing a distinct compensable injury. “In any negligence case, the plaintiff must present evidence from which a reasonable fact finder may conclude that defendant's conduct probably was a substantial factor in bringing about the harm.” (*Lineaweaver v. Plant Insulation Co.* (1995) 31 Cal.App.4th 1409, 1416.)

Accordingly, on the record as presently alleged, the elements of Medical Negligence are not met and, as such, the demurrer is **SUSTAINED WITH LEAVE TO AMEND**.

D. Fraud

The elements of Fraud are: a representation, usually of fact, which is false, knowledge of its falsity, intent to defraud, justifiable reliance upon the misrepresentation, and damage resulting from that justifiable reliance. (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 72-73; Civ. Code, §§ 1709, 1710.)

Fraud must be pled specifically; general and conclusory allegations do not suffice. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) This necessitates the pleading of facts showing how, when, where, to whom, and by what means the representations were tendered. (*Stansfield, supra*, 220 Cal.App.3d at 73.)

Here, Gandhi's Fraud theory appears to be predicated on the allegation that Defendants repeatedly represented to Plaintiff that his angiogram images had been recorded, existed, and were viewable on CDs provided by SRRMC's medical records department when in fact they had not been recorded, did not exist, and were not contained on the provided CDs. (TAC at 14:16-21.) Plaintiff does allege a number of specific communications through the Third Amended Complaint's timeline, including the name of the employee to whom he spoke in Medical Records (Monica N.), as well as his conversations with Dr. Saw concerning the missing angiogram images and whether those images were obtainable. (*Id.* at 7:16-25.) Thus, the defect is not simply that the Third Amended Complaint fails to identify any speaker or statement. Even so, the Fraud claim remains insufficient because the pleading does not allege facts showing knowledge of falsity, intent to induce reliance, or justifiable reliance.

First, the Third Amended Complaint does not adequately plead scienter. Although Gandhi alleges he was told images were on CDs or otherwise obtainable, the pleading does not allege facts showing any identified speaker knew these statements were false when made. At most, the allegations support an inference of mistake, confusion, internal miscommunication, or negligent record handling. Fraud, however, requires more than inaccurate statements or poor recordkeeping; it requires facts showing the speaker knew the representation was false. (*Universal By-Products, Inc. v. City of Modesto* (1974) 43 Cal.App.3d 145, 151.)

Second, the Third Amended Complaint does not adequately plead intent to defraud. Fraud requires facts showing the defendant made the representation with the intent to induce plaintiff's reliance. (*Lazar, supra*, 12 Cal.4th at 638.) Here, the pleading alleges Gandhi was given incorrect information and repeated assurances about the images, but it does not allege facts showing those statements were made as part of a deliberate plan to deceive Gandhi, rather than as a result of error, bureaucratic confusion, or a failure to locate or produce records.

Third, the Third Amended Complaint does not adequately plead justifiable reliance. A fraud claim requires allegations that a plaintiff actually and justifiably relied on the misrepresentation and suffered resulting damage. (*Lazar, supra*, 12 Cal.4th at 638.) Here, while Gandhi alleges delay, distress, and additional medical consequences, the pleading does not clearly allege that he changed his position in justifiable reliance on a particular knowingly false statement, as opposed to suffering harm from the underlying absence of the images themselves. In other words, the Third Amended Complaint does not clearly allege damages connected to reliance on specific fraudulent statement(s) as opposed to the broader problem that the angiogram records were unavailable.

Accordingly, on the record as presently alleged, the elements of Fraud are not met and, as such, the demurrer is **SUSTAINED WITH LEAVE TO AMEND**.

VI. Conclusion

Accordingly, because this is the first challenge to the timeliness and sufficiency of these claims as against the JMH Defendants, and the Court cannot conclude at this stage that amendment would necessarily be futile, the demurrer to all three causes of action is **SUSTAINED WITH LEAVE TO AMEND**.

Plaintiff has 15 days from notice of entry of this order to file and serve an amended pleading.

6. 9:00 AM CASE NUMBER: C24-01666
CASE NAME: NIRAJ GANDHI VS. SAN RAMON REGIONAL MEDICAL CENTER
*HEARING ON MOTION IN RE: STRIKE 3RD AMENDED COMPLAINT
FILED BY: SAW, AMAN, MD
TENTATIVE RULING:

Before the Court is Defendants Aman Saw, M.D., John Muir Health, John Muir Cardiovascular Medical Group, Inc.'s (collectively "JMH Defendants") motion to strike. The motion to strike relates to Plaintiff Niraj Gandhi's ("Plaintiff" or "Gandhi") Third Amended Complaint for (1) Negligence, (2) Fraud and Misrepresentation, and (3) Intentional Infliction of Emotional Distress.

Defendant moves to strike Plaintiff's Third Amended Complaint in its entirety on the ground that it was not timely filed; in the alternative, Defendant moves to strike Plaintiff's prayer for punitive damages on the ground that Plaintiff failed to state sufficient facts to allege punitive damages.

Plaintiff, who is an *in propria persona* litigant, opposes Defendants' motion to strike on the grounds that (1) the Court already rejected Defendants' untimeliness argument in its January 30, 2026 ruling on SRRMC's motion to strike, (2) the Court's prior ruling and reasoning on punitive damages against SRRMC does not apply where Dr. Saw is an individual, not a corporate defendant, (3) Dr. Saw qualifies as a managing agent under Code of Civil Procedure section 3294(b), (4) Code of Civil Procedure section 425.13 does not apply to intentional torts, (5) Plaintiff has adequately pled punitive damages, and (6) Defense counsel's failure to act in good faith during the meet and confer process warrants denial of the instant motion.

The JMH Defendants' motion to strike Plaintiff's Third Amended Complaint in its entirety is **DENIED**; the motion to strike Plaintiff's prayer for punitive damages is **GRANTED WITHOUT LEAVE TO AMEND**.

I. Factual Allegations and Background

This case arises out of a dispute over the alleged loss of medical records.

Niraj Gandhi underwent a left heart catheterization and angiogram performed by cardiologist Dr. Aman Saw ("Dr. Saw") at the San Ramon Regional Medical Center ("SRRMC" or "the hospital") Catheterization Lab ("Cath Lab") on November 24, 2022. (Third Amended Complaint ("TAC") at 2:24-25; 5:1-7:5.; Ex. A, B.) Immediately after the procedure, Gandhi asked to be provided with the images and video captured during the procedure and Dr. Saw told him the hospital would produce it on a CD with his discharge packet. (*Id.* at 7:5-11.) Gandhi did not receive a CD upon discharge, however. (*Ibid.*)

On November 25, 2022, Gandhi sent Dr. Saw a message following up about the missing CD and received no reply. (TAC at 7:12-15.) At a December 2, 2022,

follow-up appointment with Dr. Saw, Gandhi asked Dr. Saw to show him the images and video from the procedure, but Dr. Saw explained that the images and video were not accessible from his office, and that only SRRMC had access to them, so Gandhi would need to contact the hospital to obtain them. (*Id.* at 7:19-24.)

On November 28, 2022, and again on December 1, 2022, Gandhi called the hospital's medical records department to inquire about the CD. (TAC at 7:16-18.) In his attempt to obtain the images and video from the angiogram procedure performed at SRRMC, he picked up a CD from the hospital on December 7, 2022, and another on December 15, 2022. (TAC at 8:1-6.) In both instances, the discs he received did not contain the images or video from the procedure. (*Id.* at 8:1-14.)

Gandhi ultimately sought a second opinion on his heart condition from Dr. Ramesh Veeragandham ("Dr. Veeragandham") in June of 2023. (TAC at 3:12-13; 8:20-21.) Dr. Veeragandham advised Plaintiff that in order for him to determine whether an additional procedure was necessary, he would need to review the angiogram imaging, and, in its absence, a repeat procedure would be required. (*Id.* at 20:1-6) Dr. Veeragandham attempted to access the CDs Plaintiff provided from the hospital and, finding no images or video, Dr. Veeragandham contacted the Cath Lab at SRRMC to seek the imaging from the hospital directly. (TAC at 8:20-27.) Dr. Veeragandham made the following note July 6, 2023: "I tried to access the films in San Ramon but somehow there was no data. After back-and-forth, it was determined that the films were lost permanently." (TAC at 9:1-6.)

Gandhi contacted Dr. Saw on July 7, 2023, again asking for his help in obtaining the images and video from the procedure. (TAC at 9:7-15.) Dr. Saw replied: "I am quite surprised that the hospital had lost your records. ... The hospital medical record staff is trying to figure out what happened." (TAC at 9:7-15.) Gandhi then sent a subsequent message to Dr. Saw on July 14, 2023, "indicating how much pain and suffering [he] was going through because of someone else's mistakes" and asking for the names of employees at Defendant's Cath Lab. (TAC

at 9:18-22.)

On July 17, 2023, Gandhi received a phone call from a physicians assistant from the hospital who said she had spoken to Cath Lab staff and the Cath Lab supervisor, Mike Miller, regarding the missing records. (TAC at 9:23-25.) She told Gandhi that the computer system that stores and backs up images for the Cath Lab had “gone down” on the day of Gandhi’s procedure, causing the images to not be saved. (*Id.* at 9:23-28.) According to the Cath Lab staff, the problem was escalated to the computer company and the corporate hospital system, Tenet. (*Id.* at 3:26-4:1.)

On August 9, 2023, Gandhi underwent a second left heart catheterization, this time performed at John Muir Hospital in Concord by Dr. Christopher Chen. (TAC at 10:6-8.) Two days later he began to feel a “very strong burning sensation and numbness in [his] thigh and upper leg around the incision from where the catheterization was performed.” (*Id.* at 10:11-15.) He was subsequently diagnosed with a femoral nerve injury, likely caused by the second angiogram. (*Id.* at 4:8-14, 10:22-11:2.)

Gandhi filed the instant suit on July 1, 2024. SRRMC demurred and moved to strike, prompting a First Amended Complaint. Two subsequent pairs of demurrers and motions to strike by SRRMC led to second and third amended complaints; the operative Third Amended Complaint was filed September 5, 2025.

On January 30, 2026, the Court overruled in part and sustained in part a fourth motion to strike from SRRMC. The Court found insufficient grounds to strike Gandhi’s Third Amended Complaint in its entirety as untimely, but sustained the motion in part on the grounds that he failed to state facts sufficient to state a claim for punitive damages against SRRMC.

Gandhi filed a Doe amendment adding Aman Saw, M.D., John Muir Cardiovascular Services, and John Muir Health as Does one, two, and three, on November 14, 2025. JMH Defendants filed the instant motion and its

accompanying demurrer on January 20, 2026.

II. Meet and Confer Efforts

California Code of Civil Procedure section 435.5(a) requires the parties to meet and confer in good faith before the filing of a motion to strike in an attempt to informally resolve the objections raised therein.

Here, counsel for the JMH Defendants filed a declaration stating that, after obtaining a 30-day extension of time in which to file a responsive pleading, defense counsel and Plaintiff participated in a telephonic conference on January 20, 2026, during which they discussed relation-back, statute of limitations, and fact pleading issues raised by the instant motion to strike. (Declaration of Patrick Goonan iso Motion to Strike (“Goonan Dec.”) ¶¶5-7.)

Plaintiff, in turn, asserts the meet-and-confer process was not conducted in good faith because defense counsel did not initiate contact within the extension period, did not provide a promised detailed written statement before the call, waited until the day the responsive pleading was due to discuss the issues, and “no meaningful attempt to resolve the issues was made.” (Declaration re: Opposition to Motion to Strike Third Amended Complaint (“Gandhi Dec.”) ¶¶5-9.) Defense counsel likewise acknowledges the office intended to send a more detailed statement before the call but was “unable to complete” it. (Goonan Dec. ¶16(e).)

The record therefore suggests the meet-and-confer process was imperfect, however, the parties did in fact confer telephonically before the motion to strike was filed, and any insufficiency in the meet-and-confer process is not grounds to deny a motion to strike (Code Civ. Proc., § 435.5(a)(4). Accordingly, the Court considers the instant motion on the merits.

III. Legal Standard

“Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof...” (Code Civ. Proc., § 435(b)(1).) The court may, upon a motion made pursuant to § 435 “(a) Strike

out any irrelevant, false, or improper matter inserted in any pleading[,] [or] (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436.) A motion to strike reaches only matters appearing on the face of the pleading or from matters of which the Court may take judicial notice. (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683.)

“An amendment should be allowed where the defect, though one of *substance*, may possibly be cured by supplying omitted allegations, and the plaintiff has not had a fair opportunity to do so...” (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 168.) Where the defect raised by a motion to strike is not reasonably capable of cure, leave to amend should be denied. (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146.)

Self-representation is not a ground for exceptionally lenient treatment. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985.) *Pro per* litigants are not entitled to special treatment and are held to the same rules of procedure as an attorney. (*Bai v. Yip* (2024) 107 Cal.App.5th 188, 197.)

IV. Analysis

As an initial matter, Plaintiff’s opposition contains repeated citation problems. The briefing relies on numerous authorities for propositions concerning motion to strike practice, punitive damages, and the applicability of Code of Civil Procedure section 425.13; many, if not most, of those citations are inaccurate, inapposite, or materially overstate the holdings of the cited cases. The Court therefore does not treat Plaintiff’s citation string as independently persuasive and instead evaluates each issue under the governing authorities and the pleaded facts.

A. Motion to Strike Third Amended Complaint in Its Entirety

The JMH Defendants move to strike Plaintiff’s complaint in its entirety on the same timeliness grounds Defendant SRRMC invoked in its October 8, 2025 motion to strike in this case. The Court addressed and rejected these arguments in its January 30, 2026 ruling, finding that the delay, such as it was, did not

prejudice SRRMC. The JMH Defendants were not added until November 14, 2025, more than two months after Plaintiff's Third Amended Complaint was filed. Nothing in the JMH Defendants' motion presents a basis to reach a different result from the one the Court reached as to SRRMC.

The motion to strike Plaintiff's Third Amended Complaint in its entirety is denied for the reasons stated in the Court's prior January 30, 2026 ruling, which is incorporated herein by reference.

B. Motion to Strike Prayer for Punitive Damages

i. Code of Civil Procedure Section 425.13

Section 425.13(a) regulates the pleading of a punitive damage claim against a health care provider and provides in part: "In any action for damages arising out of the professional negligence of a health care provider, no claim for punitive damages shall be included in a complaint...unless the court enters an order allowing an amended pleading that includes a claim for punitive damages to be filed." (Code Civ. Proc., § 425.13(a).) A plaintiff wishing to include a claim for punitive damages must file a noticed motion seeking to amend their pleading to add such damages and must demonstrate a substantial probability of prevailing on that claim pursuant to Civil Code section 3294. (Code Civ. Proc., § 425.13(a); *College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 713.) "[A]ny claim for punitive damages in an action against a health care provider [is] subject to [section 425.13] if the injury that is the basis for the claim was caused by conduct that was directly related to the rendition of professional services." (*Central Pathology Service Medical Clinic, Inc. v. Superior Court* (1992) 3 Cal.4th 181, 192.)

Here, Plaintiff has never sought or obtained a court order permitting a punitive damages claim against any defendant in this action. This failure is independently dispositive as to the JMH Defendants.

Every claim Gandhi asserts against the JMH Defendants arises directly from either the care he received November 24, 2022, when Dr. Saw performed a cardiac catheterization at SRRMC, or the subsequent handling of the imaging

records from that procedure.

The negligence claim alleges Defendants breached their duty when they “[failed] to properly save the images and videos from Plaintiff's medical procedure, thereby losing crucial medical records ... [and failed] to promptly notify Plaintiff of the loss of these records and by repeatedly providing Plaintiff with incomplete and inaccurate records, specifically CDs with no images and videos from the Angiogram.” (TAC at 12:19-24.) The fraud claim alleges “Defendants, through their employees and managing agents, repeatedly represented to Plaintiff that the medical images and videos from Plaintiff's cardiac catheterization procedure were available and would be provided to him on CDs.” (*Id.* at 14:16-21.) The IIED rests on the same course of conduct. (*Id.* at 13:17-21.) Each cause of action thus emanates from the manner in which Dr. Saw provided medical services to Gandhi, bringing this action squarely within section 425.13.

Central Pathology is directly on point. There, the California Supreme Court held that section 425.13 applied to fraud and IIED claims because they arose from the manner in which the defendant physicians performed and communicated medical tests – conduct that is ordinarily and usually part of medical professional services. (*Central Pathology Service Medical Clinic, Inc., supra*, 3 Cal.4th at 191-192.)

Plaintiffs' cause of action for fraud in this case is directly related to the manner in which defendants provided professional services. The claim emanates from the manner in which defendants performed and communicated the results of medical tests, a matter that is an ordinary and usual part of medical professional services. It is therefore governed by section 425.13(a). Plaintiffs' cause of action for intentional infliction of emotional distress is predicated on the same alleged acts as the fraud

claim. Therefore, it too is directly related to defendants' performance of professional services and is governed by section 425.13(a).

(Central Pathology Service Medical Clinic, Inc. supra, 3 Cal.4th at 192-193.)

The facts here are materially indistinguishable. Dr. Saw's alleged misrepresentation about the imaging documentation is no less a professional act than a physician's misrepresentation about test results.

Plaintiff's opposition does not meaningfully address section 425.13. Instead, Plaintiff incorrectly contends that section 425.13 does not apply to intentional tort claims. (Opp. at 9:20-10:3.) For this misapprehension of the law, Plaintiff utilizes the inapposite citation *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 783. (*Ibid.*) *Covenant Care* did not effect a blanket prohibition on the application of section 425.13 on intentional tort claims, however, as the court in that case was construing the Elder Abuse and Dependent Adult Civil Protection Act, a separate statutory scheme with its own punitive damages provisions. (*Covenant Care, Inc., supra*, 32 Cal.4th 771, 783.) *Covenant Care* has no application to ordinary medical negligence and fraud actions governed by section 425.13.

Central Pathology, not *Covenant Care*, controls here. "[I]dentifying a cause of action as an 'intentional tort' as opposed to 'negligence' does not itself remove the claim from the requirements of section 425.13(a). (*Central Pathology Service Medical Clinic, Inc., supra*, 3 Cal.4th at 192.) Accordingly, Plaintiff's contention that section 425.13 is inapplicable on this basis fails.

Plaintiff included a punitive damages claim in his Initial Complaint filed July 1, 2024, and has carried it through each successive amended pleading without ever filing a section 425.13 motion. The statute does not merely regulate amendments to add punitive damages, it prohibits inclusion of such a claim in any complaint absent prior court authorization. (*Central Pathology Service Medical Clinic, Inc., supra*, 3 Cal.4th at 189.) The punitive damages claim against

the JMH Defendants has accordingly been procedurally unauthorized since the inception of this litigation.

The motion to strike is **GRANTED**. Because the defect is not a pleading insufficiency but rather the absence of statutory authorization, **LEAVE TO AMEND THE PLEADING IS DENIED**. This ruling does not permanently foreclose a punitive damages claim against the JMH Defendants. Rather, it forecloses Plaintiff from unilaterally including such a claim in any further amended pleading. Should discovery produce evidence sufficient to support the required showing, Plaintiff may seek to assert punitive damages against the JMH Defendants by filing a properly noticed motion pursuant to Code of Civil Procedure section 425.13(a) seeking court authorization to assert such a claim.

i. Plaintiff's Remaining Arguments Fail on the Merits

Even setting aside the section 425.13 bar, Plaintiff's punitive damages claim fails on the merits. To recover punitive damages in an action for the breach of an obligation not arising out of contract a plaintiff must prove by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227; Code Civ. Proc., § 3294(a).) To survive a motion to strike, an allegation of punitive damages requires the plaintiff to plead the ultimate facts showing entitlement to such relief. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1254.) Furthermore, the circumstances of oppression, fraud or malice must be alleged in the pleading to support a claim of punitive damages. (*Grieves, supra*, 157 Cal.App.3d at 166.) Such charges must be pled with specificity; conclusory allegations are insufficient. (*G. D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29.)

As used in this section, the following definitions shall apply:

(1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a

willful and conscious disregard of the rights or safety of others.

(2) “Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.

(3) “Fraud” means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, § 3294(c).)

An allegation that an intentional tort was committed is not sufficient to warrant an award of punitive damages. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) “*There must be an intent to vex, annoy or injure.* Mere spite or ill will is not sufficient; and mere negligence, *even gross negligence is not sufficient to justify an award of punitive damages.*” (*Ebaugh v. Rabkin* (1972) 22 Cal.App.3d 891, 894 (emphasis in original).) “Malice” required by section 3294 implies acts taken in the spirit of mischief or with criminal indifference. (*Taylor v. Superior Court of Los Angeles County* (1979) 24 Cal.3d 890, 894 (citations.)

“Corporations are legal entities which do not have minds capable of recklessness, wickedness, or intent to injure or deceive. An award of punitive damages against a corporation therefore must rest on the malice of the corporation’s employees.” (*Cruz v. Homebase* (2000) 83 Cal.App.4th 160, 167.)

An employer shall not be liable for damages pursuant to [§ 3294] subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified

the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.

(Civ. Code, § 3294(b).)

An officer, director, or managing agent is one whose intentions guide corporate conduct. (*Cruz, supra*, 83 Cal.App.4th at 167.) A managing agent is more than a mere supervisory employee. (*White v. Ultramar* (1999) 21 Cal.4th 563, 573.) “In order to demonstrate that an employee is a true managing agent under section 3294, subdivision (b), a plaintiff seeking punitive damages would have to show that the employee exercised substantial discretionary authority over significant aspects of a corporation's business.” (*Id.* at 577.)

Here, the Third Amended Complaint makes no specific factual allegations establishing that Dr. Saw acted with intent to injure, vex, or deceive Plaintiff, as required to support a finding of malice, oppression, or fraud under section 3294. The allegations against Dr. Saw amount to a claim that he falsely charted that images were saved and later failed to assist Plaintiff in obtaining the records. (TAC at 7:12-15, 19-24, 8:15-17.) Even accepting those allegations as true, they describe at most a negligent or reckless omission, not conduct undertaken with the willful and conscious disregard for Plaintiff’s rights required under section 3294. (*Ebaugh, supra*, 22 Cal.App.3d at 894.)

As to John Muir Health and John Muir Cardiovascular Medical Group, the Third Amended Complaint contains no allegation that any officer, director, or managing agent of either entity authorized or ratified, or had advance knowledge of any allegedly wrongful conduct. The managing agent standard requires more than supervisory authority, it requires authority over decisions that ultimately determine corporate policy. (*White, supra*, 21 Cal.4th at 573;

Cruz, supra, 83 Cal.App.4th at 167.) No such allegation appears anywhere in the Third Amended Complaint as to either entity.

Plaintiff's opposition does not cure these deficiencies. Plaintiff cites *Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 871-872, for the proposition that "[a] physician who intentionally falsifies a surgical chart to conceal an error from a patient commits fraud," however this authority is inapposite, and, in fact, adverse. (Opp. at 8:10-11.) *Brousseau* instead holds that conclusory punitive damages allegations are insufficient under Civil Code section 3294 – the precise defect present here. Plaintiff also cites *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682, for the proposition that "[a] motion to strike is not a vehicle to weigh competing inferences." (Opp. at 11:9.) The characterization does not appear in *PH II*; to the contrary, *PH II* confirms that motions to strike are the proper procedural vehicle to challenge improperly pled punitive damage claims. (*PH II, Inc., supra*, 33 Cal.App.4th at 1683.)

For the foregoing reasons, and for the reasons stated in the Court's January 30, 2026 ruling as to SRRMC, which are incorporated herein by reference, Plaintiff's punitive damages claim fails on the merits, as an independent and alternative ground. On this basis, the motion to strike punitive damages is **GRANTED WITHOUT LEAVE TO AMEND**. Plaintiff has now had four opportunities to adequately plead punitive damages with specificity and has not done so. The conduct alleged describes, at most, negligent or reckless record-keeping, not despicable conduct undertaken with willful and conscious disregard for Plaintiff's rights. This denial does not affect Plaintiff's ability to seek section 425.13 authorization should discovery develop facts not currently alleged.

V. Conclusion

The JMH Defendants' motion to strike Plaintiff's Third Amended Complaint in its entirety is **DENIED**. The motion to strike Plaintiff's prayer for punitive damages is **GRANTED WITHOUT LEAVE TO AMEND** on two independent grounds: (1) Plaintiff failed to obtain court authorization pursuant to Civil Code section 425.13(a) prior to including a punitive damages claim in any complaint in this

action, and (2) the Third Amended Complaint's allegation are insufficient as a matter of law to support a finding of oppression, fraud, or malice under Civil Code section 3294.

7. 9:00 AM CASE NUMBER: C24-02303
CASE NAME: JOSE O'COIRBHIN VS. FJM PRIVATE MORTGAGE FUND, LLC
*HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL
FILED BY: O'COIRBHIN, JOSE
TENTATIVE RULING

The unopposed motion of **John R. Setlick** to be relieved as counsel for **Plaintiff Jose O'Coirbhin** is granted.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

Plaintiff Jose O'Coirbhin's Counsel has complied with the provisions of this rule and statute providing notice to client and supporting his motion with a declaration articulating the reasons for withdrawal.

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of **Plaintiff's** Counsel to be Relieved as Counsel of Record. This motion is Granted.

The Court will execute the Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053) adding the information of the pending Hearings on Discovery Motions Set for June 10, 2026 at 10:30 a.m. in Dept. 57. The withdrawal is effective upon Counsel **John R. Setlick**

filing the proof of service of signed order on the client and all parties.

8. 9:00 AM CASE NUMBER: C25-00782
CASE NAME: AMIN SOBHANI VS. MERCEDEZ-BENZ USA, LLC,
*MOTION/PETITION TO COMPEL ARBITRATION
FILED BY:
TENTATIVE RULING:

Introduction

Before the Court is Defendant Mercedes-Benz USA, LLC's ("MBUSA" or "Defendant") motion to compel arbitration and stay this action. The Motion relates to Plaintiffs' Complaint for two causes of action breach of express and implied warranties under the Song-Beverly Consumer Warranty Act. This Motion to Compel Arbitration and Stay Proceedings ("Motion") is brought pursuant to the Federal Arbitration Act ("FAA"), 9 U.S.C. § 1281 et. seq. and Code of Civ. Proc. § 1281 et. seq. on the grounds that Plaintiff's claims against MBUSA – concerning a 2023 Mercedes EQE 350 – fall within the arbitration provision contained in the California Motor Vehicle Lease Agreement ("Agreement") by which Plaintiff leased from Mercedes-Benz of Walnut Creek.

For the reasons explained below, **Defendant's motion to compel arbitration is granted. The Court orders the Parties to submit their dispute to arbitration in accordance with the Important Arbitration Disclosures section in the subject Lease Agreement. The Court orders this matter to be stayed in full, pending conclusion of the arbitration.**

Procedural Background

Plaintiffs filed the original complaint in this action on March 19, 2025, asserting two Song-Beverly Consumer Act causes of action.

On September 18, 2025, Defendant moved to compel arbitration.

Legal Standard for Motions to Compel Arbitration

A motion to compel arbitration "is in essence a suit in equity to compel specific performance of a contract." (*Cal. Teachers Ass'n v. Governing Bd.* (1984) 161 Cal.App.3d 393, 399, citation omitted.) "A party who files a motion to compel arbitration 'bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and a party opposing the

petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense.” (*Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580 quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) Whether or not the arbitration clause is governed by federal law, the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law and procedures. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413).)

In California, “[a] strong public policy favors the arbitration of disputes, and doubts should be resolved in favor of deferring to arbitration proceedings.” (*Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1404-1405 [citation omitted].) “A trial court is required to order a dispute to arbitration when the party seeking to compel arbitration proves the existence of a valid arbitration agreement covering the dispute.” (Id. [citation omitted]; Cal. Civ. Code Proc. § 1281.2.) As a result of this public policy, “a heavy presumption weighs the scales in favor of arbitrability....” (*Cione v. Foresters Equity Servs., Inc.* (1997) 58 Cal.App.4th 625, 642 [citation omitted].)

Analysis

Defendants’ Initial Burden

It is uncontroverted that on December 23, 2023, Plaintiff signed a California Motor Vehicle Lease Agreement (“Lease Agreement”), by which Plaintiff agreed to resolve any disputes “between you [Plaintiff] and us or any of our employees, agents, successors, assigns, or the vehicle distributor, including Mercedes-Benz US LLL (each a ‘Third Party Beneficiary’)” concerning the condition of the Subject Vehicle by binding arbitration. (Bakstad Decl., Ex. A.) The Lease Agreement has an Arbitration Disclosure Section that provides,

“Any claim or dispute, whether in contract, tort or otherwise (including any dispute over the interpretation, scope, or validity of this lease, arbitration section or the arbitrability of any issue), between you and us or any of our employees, agents, successors, assigns, or the vehicle distributor, including Mercedes-Benz USA LLC (each a “Third-Party Beneficiary”), which arises out of or relates to a credit application, this lease, or any resulting transaction or

relationship arising out of this lease (including any such relationship with third parties who do not sign this contract) shall, at the election of either you, us, or a Third-Party Beneficiary, be resolved by a neutral, binding arbitration and not by a court action.”

(Bakstad Decl., Ex. A, pp. 4-5.)

Thus, Defendant has met its burden by proving the existence of a valid arbitration agreement under a third-party beneficiary theory. Now the burden shifts to Plaintiff to prove a valid defense to the arbitration agreements exist by a preponderance of the evidence

Defendant is a Named Third-Party Beneficiary

Plaintiff objects to arbitration on the grounds that “arbitration is a matter of contract” and there is no contractual privity between Plaintiff and MBUSA. (Opp. at pp. 7-8.) However, the law is clear that a non-signatory may compel arbitration, or be bound to an agreement to arbitrate, where it is a third-party beneficiary of the agreement. (*Suh v. Superior Court* (2010) 181 Cal.App.4th 1504, 1513.) “A third-party beneficiary is someone who may enforce a contract because the contract is made expressly for his benefit.” (*Jensen v. U-Haul Co. of California* (2017) 18 Cal. App. 5th 295, 301.) Here, Plaintiff signed an agreement which specifically defines Defendant MBUSA as a “Third-Party Beneficiary” of the lease. The agreement further indicates the intent for third-party beneficiaries to be able to compel arbitration.

The parties’ Opposition and Reply papers reference both the Appellate and California Supreme Court *Ford Motor Warranty Cases*. (See *Ford Motor Warranty Cases* (2023) 89 Cal.App.5th 1324; and *Ford Motor Warranty Cases* (2023) 17 Cal. 5th 1122.) In *Ford Motor Warranty Cases*, a unanimous Supreme Court found that the “third party beneficiary” language in an arbitration clause was not properly read as binding the buy of the vehicle to arbitrate with unnamed third parties. *Ford Motor Warranty Cases*, supra, 17 Cal. 5th at 1127.

Plaintiff’s opposition heavily relied on the *Ford Motor Warranty Cases* (2023) 89 Cal.App.5th 1324 under the premise that Plaintiff’s claims solely “arise from a statutory scheme separate and apart from the contracts.” In that case, the relevant provision of the contracts at issue stated,

“EITHER YOU OR WE MAY CHOOSE TO HAVE ANY DISPUTE BETWEEN US DECIDED BY ARBITRATION AND NOT IN COURT OR BY JURY TRIAL.” It later elaborates: “[a]ny claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, and the arbitrability of the claims or dispute), between you and us OR our employees, agents, successors or assigns, which arises out of or relates to your credit application, purchase, or condition of this vehicle, this contract or any resulting transaction or relationship (including any such relationship with third parties who did not sign this contract) shall, at your or our election, be resolved by neutral, binding arbitration and not by a court action.” *Ford Motor Warranty Cases* (2025) 17 Cal. 5th 1122, 1127 (citation omitted).

The Appellate Court had determined that Ford Motor Company was not a third-party beneficiary, stating “[i]f the signatories had intended to benefit Ford Motor Company (“FMC”), such a purpose would have been easy to articulate. *They could have simply named FMC—directly or by class as the vehicle’s manufacturer—as a person entitled to compel arbitration.* But they did not.” (*Ford Motor Warranty Cases* (2023) 89 Cal.App.5th 1324, 1339 (emphasis added).)

The Supreme Court affirmed the Appellate Court specifically noting, “Ford, the manufacturer, was not a party to, *or named in*, the sales contracts.” (*Ford Motor Warranty Cases* (2023) 17 Cal. 5th 1122, 1126.) The Supreme Court adopted the Appellate Court’s assessment that “The sales contract says nothing of binding the purchaser to arbitrate with the universe of unnamed third parties.” (*Id.* at 1130.)

Here, the arbitration clause’s specification of Mercedes Benz USA, LLC as a third-party beneficiary directly addresses the Supreme Court’s concerns of subjecting a party to arbitrate with a “universe of unnamed third parties.” (*Id.* at 1130; See also Bakstad Decl., Ex. A, pp. 4-5.) Thus, the Court finds Plaintiff agreed in the Arbitration Clause to arbitrate with Defendant MBUSA, as a

specifically designated third party beneficiary.

Defendant Is Not Moving on the Grounds of Equitable Estoppel

Under the equitable estoppel theory, a non-signatory “‘is estopped from avoiding arbitration if it knowingly seeks the benefits of the contract containing the arbitration clause.’” (*Crowley Maritime Corp. v. Boston Old Colony Ins. Co.* (2008) 158 Cal.App.4th 1061, 1070.) Equitable estoppel “precludes a party from claiming the benefits of a contract while simultaneously attempting to avoid the burdens that contract imposes.” (*Philadelphia Indemnity Ins. Co. v. SMG Holdings, Inc.* (2019) 44 Cal.App.5th 834, 841; citing *Comer v. Micor, Inc.* (9th Cir. 2006) 436 F.3d 1098, 1101.)

Plaintiff devotes a large part of the Opposition to the argument that Defendant MBUSA has not established equitable estoppel. However, Defendant does not move on that ground and instead moves as a third-party beneficiary to enforce the Arbitration Disclosure section of the Lease Agreement. Plaintiff’s equitable estoppel argument is not applicable here because a Defendant did not argue based on an equitable estoppel theory. Equitable estoppel is tool to compel parties to arbitration which Defendant has not chosen to employ.

Stay

The Important Arbitration Disclosures in this case indicate that the lease shall be governed by the Federal Arbitration Agreement. (Bakstad Decl. ¶ 4, Ex A.)

Under the FAA, courts must stay an action where “the issue involved in such suit or proceeding is referable to arbitration under an arbitration agreement.” (9 U.S.C § 3.)

Independent of the CAA and FAA, courts have inherent authority to stay proceedings. (*Landis v. North American Co.* (1936) 299 U.S. 248, 254 [“the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants”]; *Nederlandse Erts-Tankersmaatschappij, N.V. v. Isbrandtsen Co.* (2nd Cir. 1964) 339 F.2d 440, 441 [no authority under 9 U.S.C. § 3 to stay action, but stay permitted under district court’s inherent power to control its docket]; *Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484,

1489 [“Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency”).) Even assuming the CAA and FAA neither require nor authorize the court to stay the current claims, the Court here would exercise its inherent authority to issue a stay pending the completion of binding arbitration.

Conclusion

Defendant’s motion to compel arbitration is granted. The Court orders the Parties to submit their dispute to arbitration in accordance with the Important Arbitration Disclosures section in the subject Lease Agreement. The Court orders this matter to be stayed in full, pending conclusion of the arbitration.

The court sets a Case Management Conference (CMC) for the purpose of ascertaining the status of the arbitration for Monday, December 7, 2026, in Dept. 32 at 8:30 a.m. Parties are ordered to file a joint statement on the status of the arbitration, specifically to include confirming whether or not the arbitration is still in progress, and if the arbitration is continuing indicating a preference for a continued CMC in either 6 or 9 months. The joint statement is due to be filed 10 court days prior to the CMC. Parties may appear at the CMC by Zoom.

9. 9:00 AM CASE NUMBER: C25-03095
CASE NAME: WELLS FARGO BANK, NATIONAL ASSOCIATION VS. ROSEWOOD COMMONS
PROPERTY OWNER, LLC
*HEARING ON MOTION IN RE: APPOINTMENT OF RECEIVER
FILED BY: WELLS FARGO BANK, NATIONAL ASSOCIATION
TENTATIVE RULING:

Plaintiff’s Motion for Appointment of Receiver is granted. The Court approves the nomination of David Kieffer to be the Receiver in this action. The Court will sign and file the Proposed Order.

10. 9:00 AM CASE NUMBER: C25-03386
CASE NAME: CECILY TAYLOR VS. STEVE SMITH
*HEARING ON MOTION IN RE: DISQUALIFY COUNSEL
FILED BY: TAYLOR, CECILY
TENTATIVE RULING:

Before the Court is Plaintiff Cecily Taylor’s Motion to Disqualify Counsel.

Plaintiff's motion is **denied** for the reasons set forth below.

Factual and Procedural Background

Plaintiff filed her Complaint in this matter on November 21, 2025. Plaintiff is representing herself in pro per. Defendants first appeared in this matter when they filed a Demurrer to the Complaint on January 8, 2026. Counsel of Record for Defendants is Alexander J. Gregory of the Law Offices of Alexander J. Gregory.

On January 28, 2026, Plaintiff filed the instant motion to disqualify counsel. According to the Notice, Plaintiff seeks an order "disqualifying Alexander J. Gregory, Esq., and the Law Office of Alexander J. Gregory, Tod Ratfield, Esq., and the law firm of Tod M. Ratfield, A Professional Corporation Attorney at Law ("Tod Ratfield and Associated Counsel")...." (Notice at 2:4-10.) Plaintiff contends there are irreconcilable conflicts of interest related to alleged prior representation of Plaintiff by Mr. Ratfield and his firm.

Standard

"A court's authority to disqualify a lawyer in a pending proceeding derives from its inherent power to regulate the conduct of court officers, including attorneys, in furtherance of the sound administration of justice." *City of San Diego v. Superior Court* (2018) 30 Cal.App.5th 457, 469.) "Whether an attorney should be disqualified is a matter addressed to the sound discretion of the trial court." (*Henricksen v. Great American Savings & Loan* (1992) 11 Cal.App.4th 109, 113.)

Disqualification, however, is "a drastic remedy that should be ordered only where the violation of the privilege or other misconduct has a 'substantial continuing effect on future judicial proceedings.'" (*Id.* at 462 quoting *Gregori v. Bank of America* (1989) 207 Cal.App.3d 291, 309.) "There must be a 'reasonable probability' and 'genuine likelihood' that opposing counsel has 'obtained information the court believes would likely be used advantageously against an adverse party during the course of the litigation.'" (*Ibid.*)

"Motions to disqualify counsel are especially prone to tactical abuse because disqualification imposes heavy burdens on both the clients and courts: clients are deprived of their chosen counsel, litigation costs inevitably increase and delays inevitably occur. As a result, these motions must be examined 'carefully

to ensure that literalism does not deny the parties substantial justice.’” (*City of Santa Barbara v. Superior Court* (2004) 122 Cal.App.4th 17, 22 quoting *People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1144.)

Defendant’s allegation that Plaintiff used AI and miscited legal authority.

Defendants allege that Plaintiff used AI to generate false and misleading legal authority which she cited in her moving papers. (Opp. at 3-4.) The court is mindful that on April 10, 2026, it issued an Order to Show Cause to Plaintiff for citing non-existent case authority and for citing to actual case authority in a misleading manner in a previous motion. The hearing on that Order to Show Cause has yet to occur. It is set for May 8, 2026, at 9:00 a.m. After examining the citations at issue here, the court concludes that the first of Defendant’s allegations amounts to a mere error in pagination. Plaintiff’s citation of *Kirk v. First American Title* (2010) 183 Cal. App. 4th 776, 801, for the proposition that, “The moving party bears the burden of showing a conflict, but once established, disqualification is presumptively warranted absent waiver,” is more problematic. The opinion does not stand for the stated proposition.

In the *Kirk* case, the court addressed the issue of whether an entire law firm (as opposed to an entire government law office) is automatically disqualified from representation of a client if a single lawyer in the firm possessed material client confidences from a prior representation of a party adverse to that client.

Justice Crosky summarized the court’s central holding as follows.

In this case, we are not concerned with the issue of disqualifying the attorney possessing the material client confidences from representing an adverse party; it is conceded that the attorney is disqualified from doing so. Instead, we are concerned with the issue of the vicarious disqualification of the attorney’s entire law firm. We conclude that, under the circumstances of this case, *automatic* vicarious disqualification is not required, and that, instead, there is a *rebuttable* presumption that the attorney’s knowledge of client confidences is imputed to the firm, which can be refuted by evidence that the law firm adequately screened the attorney from the others at the firm representing the adverse party.

Kirk, supra, 183 Cal. App. 4th at 784.

Plaintiff wrongly asserted that the *Kirk* case at page 801 stands for the proposition that if a conflict is established, disqualification is “presumptively warranted absent waiver.” It does not. Instead, the court explained that a presumption of vicarious disqualification is a rebuttable one. At page 801, the *Kirk* court stated, “We do not doubt that vicarious disqualification is the *general* rule, and that we should presume knowledge is imputed to all members of a tainted attorney’s law firm. However, we conclude that, in the proper circumstances, the presumption is a rebuttable one, which can be refuted by evidence that ethical screening will effectively prevent the sharing of confidences in a particular case.” *Kirk, supra*, 183 Cal. App. 4th at 801, (emphasis in original). Thus, Defendant is correct that Plaintiff miscited legal authority to the court.

Other than ignoring the misleading citation asserted by Plaintiff, the court will not take additional action to sanction Plaintiff for this apparent misuse of legal authority. Given that the Court, on April 10, 2026 already issued an Order to Show Cause against Plaintiff for misrepresenting legal authority to the Court in other pleadings and set that hearing for May 8, 2026, and in view of the fact that Plaintiff filed the instant papers containing the misleading citation, on January 28, 2026, about two and half months before the Court’s current Order to Show Cause, the Court will not take additional action concerning the Plaintiff’s misleading citation of the *Kirk* case.

Analysis

Tod M. Ratfield

Initially, the Court notes that Plaintiff is seeking to disqualify the law firm of Tod M. Ratfield, A Professional Corporation Attorney at Law and attorney Tod M. Ratfield from this matter. The Ratfield firm and Mr. Ratfield, however, are not counsel of record in this matter. They have made no appearances and do not appear on any papers filed with the Court.

Plaintiff does not provide any legal authority to support the proposition that the Court has the authority to disqualify counsel not currently before it from participating in a matter. If attorney Ratfield were to associate into the matter, Plaintiff could make a motion at that time directed toward any potential conflict

she believes exists.

Mr. Gregory's Alleged Conflict

Plaintiff relies upon California Rules of Professional Conduct 1.7 and 1.9 as the basis for her motion to disqualify.

Rule 1.7 pertains to concurrent representation of current clients and states, in pertinent part:

(a) A lawyer shall not, without informed written consent from each client and compliance with paragraph (d), represent a client if the representation is directly adverse to another client in the same or a separate matter.

(b) A lawyer shall not, without informed written consent from each affected client and compliance with paragraph (d), represent a client if there is a significant risk the lawyer's representation of the client will be materially limited by the lawyer's responsibilities to or relationships with another client, a former client or a third person, or by the lawyer's own interests.

California Rules of Professional Conduct 1.9 pertains to the duties of attorneys to former clients. It states, in pertinent part:

A lawyer who has formerly represented a client in a matter shall not thereafter represent another person in the same or a substantially related matter in which that person's[] interests are materially adverse to the interests of the former client unless the former client gives informed written consent.

"Before an attorney may be disqualified from representing a party in litigation because his representation of that party is adverse to the interest of a current or former client, it must first be established that the party seeking the attorney's disqualification was or is 'represented' by the attorney in a manner giving rise to an attorney-client relationship." (*Koo v. Rubio's Restaurants, Inc.* (2003) 109 Cal.App.4th 719, 729 quoting *Civil Service Com. v. Superior Court* (1984) 163 Cal.App.3d 10, 76-77.)

“‘A ‘standing’ requirement is implicit in disqualification motions. Generally, before the disqualification of an attorney is proper, the complaining party must have or must have had an attorney-client relationship with that attorney.’”

(*Coldren v. Hart, King & Coldren, Inc.* (2015) 239 Cal.App.4th 237, 245 quoting *Great Lakes Construction, Inc. v. Burman* (2010) 186 Cal.App.4th 1347, 1356.)

“The burden is on the party seeking disqualification to establish the attorney-client relationship.” (*Ibid.*)

Plaintiff presents no evidence and does not even argue that she was ever previously represented by attorney Gregory. Instead, she appears to argue that in April 2025 she communicated with Tod Ratfield regarding possibly hiring him to help her collect on a couple of judgments that were obtained by LLCs that she owned. (Mtn. at 5:6-13; Taylor Decl. ¶ 4-6.) She claims to have shared the ‘confidential judgments’ with Mr. Ratfield during those communications. (Taylor Decl. ¶ 4-6.) Plaintiff does not assert that she hired or retained Mr. Ratfield.

To link these communications to attorney Gregory, Plaintiff argues that attorney Gregory works for Mr. Ratfield and that any ‘confidential’ information sent to Mr. Ratfield should be imputed to Mr. Gregory.

Mr. Gregory confirms that prior to this matter he had never represented, met, or spoken to Plaintiff. (Gregory Decl. ¶ 5.) As for the alleged business relationship between Mr. Ratfield and Mr. Gregory, Mr. Gregory confirms that he occasionally works with Mr. Ratfield on an as-needed basis, as he does with a few other solo practitioners. (*Id.* ¶ 8.) Regarding Mr. Ratfield’s communications with Plaintiff, Mr. Gregory confirms he had no knowledge of them, nor the contents of any documents sent by Plaintiff. (¶ 9.)

Mr. Ratfield confirms that he never discussed any of Plaintiff’s communications with Mr. Gregory. (Ratfield Decl. ¶ 19-20.) In addition, while he does occasionally work with Mr. Gregory on cases on an ‘as-needed’ basis, Mr. Gregory is not employed by him. (¶ 21-22.) When Defendant Steve Smith contacted Mr. Ratfield, he informed Mr. Smith that he was too busy at that time to handle his matter. (¶ 18.) Instead, he referred Mr. Smith to Mr. Gregory. (*Ibid.*)

Additionally, Mr. Ratfield disputes the claim that he had an attorney-client relationship with Plaintiff. Initially, it is undisputed that Plaintiff never hired Mr. Ratfield. Mr. Ratfield also explains that none of the information sent by Plaintiff was confidential. Instead, it consisted of publicly available judgments entered in favor of RCLC, LLC. (¶ 4-11.) There were never any discussions of legal representation of Plaintiff. (*Ibid.*) Plaintiff was not named in either of those matters and as such even if there was a potential engagement it would be with the LLC and not with Plaintiff. There are no discussions of, or information related to, the Defendants in this action exchanged during those communications. (¶14.)

All the above fails to show that Plaintiff ever had any prior business or attorney-client relationship with Mr. Gregory. Nor did she establish that she had an attorney-client relationship with Mr. Ratfield. Even if there were such an association, Plaintiff has failed to show any reasonable connection between Mr. Ratfield and Mr. Gregory that could conceivably impute Mr. Ratfield's knowledge to Mr. Gregory.

In summary, Plaintiff has failed to meet her burden to establish the requisite attorney-client relationship necessary to seek disqualification of Mr. Gregory.

Additional Issues

In their Opposition, Defendants argue that Plaintiff improperly obtained and used confidential attorney-client documents that belong to defense counsel. (Opp. at III (f).) They request that the Court "order the immediate removal of all privileged materials from public access, prohibit Taylor from further use of such materials, require her to return every copy in her possession, preclude her from using those materials, or any information gained from them, in this action, or any action, for any purpose, and impose monetary sanctions of \$5,000, or such other amount as the Court deems appropriate, to deter further misconduct." (Opp. at 10:10-15.)

Any request for affirmative relief made in an opposition is improper and will not be considered by the Court. "An application for an order is a motion." (Code Civ. Proc. § 1003.) Motions must follow the filing and service requirements set forth

in the Code. (See e.g. Code Civ. Proc. § 1005, 1010.) To the extent Defendants seek affirmative relief for any of Plaintiff's actions, they are required to file a motion seeking such relief.

Conclusion

Plaintiff's motion to disqualify is **denied**.

11. 9:00 AM CASE NUMBER: MSC19-01240

CASE NAME: SONNENSHEIN VS PACIFIC UNION

*HEARING ON MOTION IN RE: FOR PARTIAL JUDGMENT ON THE PLEADINGS AS TO DEFENDANTS' ANSWER

FILED BY: SONNENSHEIN, STACEY

TENTATIVE RULING:

Before the Court is a motion by Plaintiffs for partial judgment on the pleadings. For the reasons set forth, the motion is **denied**.

Background

In July 2015, plaintiffs Stacey Sonnenshein and Adam Bailey purchased a residential real property located at 6040 Feliz Avenue in Richmond. In their operative second amended complaint ("2AC"), Plaintiffs have sued defendants Pacific Union International, Inc. and Dan Joy, the real estate brokerage and sales agent, respectively, who represented both the Plaintiffs as buyers and the sellers in the transaction. They allege the defendants misrepresented that the "in-law" unit on the property was a "legal" unit. The 2AC alleges three causes of action for actual/constructive fraud (1st C/A), negligence (2nd C/A), and breach of fiduciary duty (3rd C/A).

Plaintiffs move for partial judgment on the pleadings as to Defendants' tenth affirmative defense in their amended answer filed on October 27, 2025.

Plaintiffs seek a partial judgment on the pleadings to the effect that the tenth affirmative defense does not constitute a defense to the Plaintiffs' second cause of action for negligence. (Not. Mot. p. 2, ll. 3-12.)

Legal Standards Applicable to Motion for Judgment on the Pleadings

Code of Civil Procedure section 438 addresses motions for judgment on the pleadings. "A plaintiff is entitled to judgment on the pleadings if its complaint states a cause of action against the defendant and the defendant's answer does

not state facts sufficient to constitute a defense." (*State Comp. Ins. Fund v. ReadyLink Healthcare, Inc.* (2020) 50 Cal. App. 5th 422, 445.) (See also Code Civ. Proc. § 438(c)(1)(A).) The motion may be made "as to either of the following: [¶] (A) The entire complaint or cross-complaint or as to any of the causes of action stated therein. [¶] [or] (B) The entire answer or one or more of the affirmative defenses set forth in the answer." (Code Civ. Proc. §§ 438(c)(2)(A) and (B).)

Like a demurrer, "The grounds for motion provided for in this section shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc. § 438(d).) (*See also Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650 ["Such motion may be made on the same ground as those supporting a general demurrer, i.e., that the pleading at issue fails to state facts sufficient to constitute a legally cognizable claim or defense. [Citation omitted.]"]; *Connerly v. Schwarzenegger* (2007) 146 Cal.App.4th 739, 746 [" 'A motion for judgment on the pleadings is the equivalent of a demurrer made after the pleadings are in.' [Citation omitted.]"]].)

The legal standards for determination of a motion for judgment on the pleadings are similar to the standards for determination of a demurrer. (*Eckler v. Neutrogena Corp.* (2015) 238 Cal.App.4th 433, 439.) As in the case of a demurrer, the Court accepts all factual allegations of the complaint (or answer) and "gives them a liberal construction." (*Gerawan Farming, Inc. v. Lyon* (2000) 24 Cal.4th 468, 515-16.) "[J]udgment on the pleadings must be denied where there are material factual issues that require evidentiary resolution. [Citation omitted.]" (*Schabarum v. California Legislature* (1998) 60 Cal. App. 4th 1205, 1216.)

Consistent with the rules for determination of a demurrer, a motion for judgment on the pleadings must fully dispose of the challenged cause of action, or the challenged affirmative defense. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167 [demurrer], overruled in part on other grounds by *Sheen v. Wells Fargo Bank, N.A., supra*, 12 Cal.5th at 919; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683 [demurrer].) A motion for judgment on the pleadings cannot be granted as to a portion of a cause of

action or a portion of an affirmative defense for the same reason as a demurrer. (See *Fire Ins. Exchange v. Superior Court* (2004) 116 Cal.App.4th 446, 452 [stating a motion for judgment on the pleadings is the "functional equivalent" of a demurrer, and that "[o]rdinarily, a general demurrer does not lie as to a portion of a cause of action, and if any part of a cause of action is properly pleaded, the demurrer will be overruled. [Citation omitted.]"].)

Further, "If the motion for judgment on the pleadings is granted, leave to amend must be granted unless the defect cannot be cured by amendment." (*Hudson v. County of Los Angeles* (2014) 232 Cal.App.4th 392, 408.) (See also *Gami v. Mullikin Medical Center* (1993) 18 Cal. App. 4th 870, 876-877.)

Meet and Confer Requirement

Plaintiffs' counsel filed a declaration describing the meet and confer process leading to the motion. The parties met and conferred exclusively by exchanging letters and emails. (Steinfeld Meet & Confer Decl. ¶¶ 5-7.) Parties are required to meet and confer "in person, by telephone, or by video conference" under Code of Civil Procedure § 439(a). Nevertheless, Plaintiffs' counsel's initial communication invited Defendants' counsel to provide convenient times for a discussion, to which Defendants' counsel responded indicating they would not withdraw their tenth affirmative defense. (Steinfeld Meet and Confer Decl. Exhs. 1 and 2.) The Court finds that the meet and confer requirement has not been adequately satisfied, and the Court reminds the parties that the obligation to meet and confer by telephone, videoconference, or in person is imposed on both sides, not just the moving parties. Nevertheless, the Court will issue a ruling on the merits of the motion given the Court's intended denial of the motion for the reasons stated herein.

Analysis

Plaintiffs' motion for judgment on the pleadings is based on a number of pleadings including: (1) the Steinfeld Declaration regarding a "Stipulation of Counsel re Admissibility at Trial of Specified Documents" dated September 29, 2025 ("Document Stipulation"), accompanied by nine documents, such as a residential purchase agreement and other documents related to the sale, emails and a Buyer Representation Agreement – Exclusive (Exhs. 1-10); (2) the

Bailey Declaration describing Bailey's version of the events involved in the purchase as well as subsequent events related to their alleged claims for damages with additional documents attached as exhibits; (3) a "Separate Statement of Undisputed Material Facts" in support of the motion, listing a series of facts with citations to supporting evidence; (4) another Steinfeld Declaration attaching copies of the versions of Civil Code §§ 1088 and 1086 he attests were in effect in 2015 when the sale transaction occurred; (5) a request for judicial notice ("Plaintiffs' RJN") of the significance of certain statutes (Bus. & Prof. Code ¶ 10015.1, Civ. Code § 1088(b), and Civ. Code § 1086(b)), as well as a request for judicial notice of the legislative history of Civil Code § 1088 added in 1982 and amended in 1993, copies of which are included as attachments Items 1 and 2 to the RJN. (Not. Mot. and Mot. p. 3, ll. 1-8.)

As explained below, the relief sought by Plaintiffs in the motion does not fit the criteria for relief under Code of Civil Procedure § 438. Further, the Separate Statement highlights that the motion improperly raises factual and evidentiary matters outside the 2AC and the amended answer and matters properly subject to judicial notice. Plaintiffs' reliance on facts and evidence outside the operative pleadings and Plaintiffs' RJN preclude the Court from granting the motion.

A. The Motion Cannot Be Granted Because the Relief Sought Would Not Result in Judgment for Plaintiffs on the Second Cause of Action or Judgment for Plaintiffs on the Tenth Affirmative Defense

Defendants' Amended Answer filed on October 27, 2025 includes the following as Defendants' Tenth Affirmative Defense: "As an affirmative defense to each and every cause of action, Defendants allege that their duties, if any, were limited by the terms of the various statutes, including but not limited to, Civil Code sections 1102 *et seq.* and 2079 *et seq.*, including 2079.3, which provides that Defendants had no duty to inspect areas of the subject property that are reasonably and normally inaccessible to a visual inspection, areas off the site of the property, or public records and permits concerning the title or use of the property." (Emphasis added.) The face of Defendants' amended answer alleges fourteen affirmative defenses, each of which is alleged and stated to be applicable to "each and every cause of action."

The motion does not seek judgment on the pleadings for Plaintiffs on their second cause of action for negligence in its entirety on the ground that they are entitled to judgment as a matter of law on that cause of action. Plaintiffs do not seek judgment on the pleadings in their favor on the ground that the tenth affirmative defense does not state facts sufficient to constitute a defense to any of the three causes of action alleged in the 2AC. Plaintiffs are explicit both in their notice of motion and motion and their supporting memorandum that they seek a determination only that the tenth affirmative defense is not a defense to their negligence cause of action. (Not. Mot. p. 2, ll. 3-12; MPA ISO Mot. p. 5, ll. 16-17 ["The Tenth Affirmative Defense in the Amended Answer is pled as to 'each and every cause of action,' but here is considered only in relation to the cause of action for negligence."].)

Granting the relief requested in the motion would not entitle Plaintiffs to judgment on either a cause of action or an affirmative defense. The tenth affirmative defense would continue to stand as a defense to other causes of action alleged in the 2AC, and Plaintiffs have not demonstrated they are entitled to judgment on the negligence cause of action as a matter of law based on the pleadings alone, including in light of the 13 other affirmative defenses raised and Defendants' general denial of the allegations of the 2AC in their amended answer, whether or not matters properly subject to judicial notice are considered. Because the relief Plaintiffs seek on the motion would neither fully dispose of a cause of action nor eliminate an entire affirmative defense to the 2AC, the motion is **denied**. (Code Civ. Proc. §§ 438(c)(2)(A) and (B); *Daniels, supra*, 246 Cal.App.4th at 1167; *PH II, supra*, 33 Cal.App.4th at 1682-1683; *Fire Ins. Exchange, supra*, 116 Cal.App.4th at 452.)

B. The Motion Is Improper As It Is Based on Evidentiary Matters Outside the Scope of the Pleadings and Matters Within the Proper Scope of Judicial Notice

The only documents Plaintiffs have requested judicial notice of in their RJN are the meaning of three statutes as cited above and the legislative history of Civil Code § 1088 when enacted and when amended in 1993. For their part, Defendants have requested judicial notice of a first amended petition for writ of mandate filed by Plaintiffs as petitioners, initiating Case No. N24-0591, and an

April 3, 2025 Order in that case. Plaintiffs contend in their reply that they did not have an adequate opportunity to address the documents for which Defendants request judicial notice. Whether or not the Court granted either side's request for judicial notice, the moving papers demonstrate that Plaintiffs are asking the Court to consider factual and evidentiary matters outside the scope of the 2AC, Defendants' amended answer, and the matters subject to their filed requests for judicial notice, which is improper on a motion for judgment on the pleadings.

The Steinfeld "Stipulation" Declaration attaches as Exhibit 1 the Document Stipulation between counsel which states in relevant part that the documents listed in the Stipulation "are genuine and shall be admissible at the trial of this matter." (Steinfeld "Stipulation" Decl. Exh. 1 [Doc. Stip. p. 2, ll. 1-4].) The only facts agreed to in the Document Stipulation are that the listed documents are authentic and relevant, such that they can be admitted into evidence at trial. The motion is based in part on the truth and interpretation of transactional documents between the parties and the parties' email communications (*see* Steinfeld Stipulation Declaration Exhs. 7, 8, and 10), as well as declaration testimony by Plaintiff Bailey and exhibits attached to his declaration.

Plaintiffs' moving papers, including the facts and evidence citations in the Separate Statement, demonstrate that Plaintiffs' motion is dependent upon extrinsic evidence outside the pleadings or matters judicially noticeable, including a factual declaration by one of the Plaintiffs, and the truth and interpretation of statements in emails and other materials which are reasonably disputable. (*See* Separate Statement, Facts Nos. 5, 6, 9, 10-16, 18, 19, citing Bailey Decl. ¶¶ 4, 8, 9, 10, 12, 13, 14, 15, 17-22.) Neither the Bailey Declaration nor the Separate Statement are within the scope of the "pleadings" that are supposed to be considered in determining a motion for judgment on the pleadings, nor does Plaintiffs' reply to the opposition cite any authority that would allow the Court to do consider those matters in ruling on this motion.

Judicial notice of pleadings and documents is limited in scope. Judicial notice of a pleading is generally limited to the fact the pleading was filed, but not the truth or interpretation of the content of the pleading where reasonably disputable. (*StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9;

Fremont Indemnity Co. v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 113-115; *Sosinsky v. Grant* (1992) 6 Cal. App. 4th 1548, 1569 [judicial notice of prior order or judgment].)

The Court in *Fremont Indemnity Co.*, *supra*, 148 Cal.App.4th 97 addressed at length the proper scope of judicial notice. (*Id.* at 113-115.) Judicial notice of a document does not extend to the "truth or interpretation" of a document to the extent reasonably disputable. (*Id.* ["Although the existence of a document may be judicially noticeable, the truth of statements contained in the document and its proper interpretation are not subject to judicial notice if those matters are reasonably disputable. ([Citation omitted.])"].) The Court explained, "For a court to take judicial notice of the meaning of a document submitted by a demurring party based on the document alone, without allowing the parties an opportunity to present extrinsic evidence of the meaning of the document, would be improper. A court ruling on a demurrer therefore cannot take judicial notice of the proper interpretation of a document submitted in support of the demurrer. [Citations omitted.] In short, a court cannot by means of judicial notice convert a demurrer into an incomplete evidentiary hearing in which the demurring party can present documentary evidence and the opposing party is bound by what that evidence appears to show." (*Id.* at 114-115.) This analysis applies equally to documents presented in support a motion for judgment on the pleadings based on abundant authority, including that cited above, that the standards for ruling on a motion for judgment on the pleadings are essentially those applied to ruling on a demurrer.

Defendants argue persuasively that Plaintiffs' contentions regarding the application of Civil Code § 1088 in this case raise factual issues that cannot be resolved on a motion for judgment in the pleadings. Civil Code § 1088 in effect in 2015 provides that an agent "shall be responsible for the truth of all representations and statements made by the agent . . . of which that agent . . . had knowledge or reasonably should have had knowledge to anyone injured by their falseness or inaccuracy." (Civ. Code § 1088(b) in the current statute, the text of which is unchanged.) What Defendants knew or should have known about the in-law unit, whether Plaintiffs obtained additional information or Defendants provided additional information beyond the content of the listing

and emails regarding the in-law unit presently before the Court prior to the sale closing, whether the representations were false or inaccurate, and whether Plaintiffs were "injured by their falseness or inaccuracy" are all matters that raise factual issues requiring evidence that cannot be resolved as a matter of law on a motion for judgment on the pleadings, as the record on this motion well illustrates. (*See also* Bailey Decl. ¶¶ 4, 8, 9, 10, 12, 13, 14, 15, 17-22.)

On this additional ground, the motion is **denied**.

12. 9:00 AM CASE NUMBER: N26-0169

CASE NAME: CLAIM OF: NICOLE ORTIZ

*HEARING ON MINOR'S COMPROMISE

FILED BY:

TENTATIVE RULING:

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged with the Court.

Discovery Law & Motion

13. 9:01 AM CASE NUMBER: C24-03078

CASE NAME: THALBIR OLI VS. GOVIND SHAHI

*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DEFENDANT GOVIND K. SHAHI'S SPECIAL INTERROGATORIES, SET ONE TO PLAINTIFF THALBIR OLI

FILED BY: SHAHI, GOVIND K.

TENTATIVE RULING

Discovery Referee is appointed.

On motion of a party, stipulation of the parties, or *sua sponte*, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See CCP §639(a)(5), (b)–(d); Cal Rules of Ct 3.920–3.932, *Lu v Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to

appoint discovery referee before discovery dispute arises to assist attorneys in creating efficient discovery plan).

The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Cal. Code of Civ. Proc. §§ 639(a)(5) and 640. The Referee shall hear all disputes relevant to the discovery in the action and report findings and make a recommendation thereon. Counsel shall prepare a written order with such findings and otherwise in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc. § 639.

There are or have been a total of seven discovery motions thus far in this case, as follows.

On April 24, 2026, Judge Craddick ruled on two Discovery Motions filed by Plaintiff against Defendant. Plaintiff appeared to be the prevailing party in both motions.

Defendant filed five discovery motions: three of which are pending hearing on May 1, 2026, and two other discovery motions which are pending hearing on June 5, 2026.

The discovery motions set for hearing on May 1, 2026 and on June 5, 2026 shall be dropped from calendar and referred to a discovery referee along with any future discovery motions.

The Court notes that the parties' description of the attempts at meet and confer reveals that the parties have failed to resolve even the slightest of issues.

The Court finds, in its discretion, that such an appointment is necessary. The Court finds that in view of the history of numerous discovery motions, and in view of the existing disputes raised by the pending motions and complexity of those issues require discovery reference. Section 629(a)(5) of the Code of Civ. Proc. Section 639(a)(5) states, "When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes

relevant to discovery in the action and to report findings and make a recommendation thereon.”

By no later than **June 3, 2026 at noon**, the Parties are ordered to meet and confer pursuant to Cal. Code of Civ. Proc. § 640(a) or (b) and shall submit a stipulation and proposed order listing the proposed discovery referee to the Court along with the referee’s curriculum vitae and fee schedule by no later than June 3, 2026 at noon.

If the Parties are unable to agree to a particular discovery referee by **June 3, 2026**, the parties are to submit a joint statement to the court containing information about one proposed referee for each side. The joint statement shall list a total of two candidates, and attach as exhibits containing candidate’s fee schedules, describing any limitations on their availability to serve as a referee, previous pertinent experience, including past service as a discovery referee, and curriculum vitae. Exhibits must not to exceed 5 pages per candidate. **The parties are not to identify which party is proposing which candidate for referee.**

The joint statement proposing candidates to serve as discovery referee should be filed with the court and separately emailed to dept32@contracosta.courts.ca.gov by June 10, 2026 at noon.

The Court will select one of the proposed referees by unreported minute order and notify the parties. The Discovery Referee will be requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.

No party has established an economic inability to pay a *pro rata* share of the referee’s fee and so the fees and costs for the initial retention of the Discovery Referee shall be split equally between the parties. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.

The court maintains the Case Management Conference date set in this matter for September 29, 2026 8:30 a.m., Department 32. All parties to file and serve an updated Case Management Conference statement 15 days before the conference.

14. 9:01 AM CASE NUMBER: C24-03078

CASE NAME: THALBIR OLI VS. GOVIND SHAHI

*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFF THALBIR OLI'S RESPONSES TO DEFENDANT GOVIND K. SHAHI'S REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

FILED BY: SHAHI, GOVIND K.

TENTATIVE RULING

This matter is dropped from calendar. See ruling above in Line 13.

15. 9:01 AM CASE NUMBER: C24-03078

CASE NAME: THALBIR OLI VS. GOVIND SHAHI

*HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO SABRIAN HAN'S RESPONSES TO DEFENDANT GOVIND K. SHAHI'S REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

FILED BY: SHAHI, GOVIND K.

TENTATIVE RULING

This matter is dropped from calendar. See ruling above in Line 13.

Law & Motion

Add On

16. 9:00 AM CASE NUMBER: C24-03530

CASE NAME: MELVIN MANN VS. LUIS ARIAS

*HEARING ON MOTION IN RE: PLAINTIFF'S MOTION TO ENFORCE THE PARTIES' SETTLEMENT AGREEMENT UNDER CCP SECTION 664.6

FILED BY: MANN, MELVIN MARVIN

TENTATIVE RULING

Before the Court is a motion to enforce settlement agreement pursuant to Code of Civil Procedure § 664.6, filed by plaintiff, Malvin Marvin Mann. The motion is **granted**. Plaintiff shall circulate and submit a proposed form of

judgment.

I. Factual Background

Relevant to the present motion, on March 13, 2026, plaintiff and defendants entered into a settlement agreement resolving all issues between the parties. The settlement was entered into after a Zoom mediation was held with Jay Chafetz, Esq. as a neutral. (Declaration of David W. Ginn in Support of Motion, ¶15, Ex. A.)

As part of the agreement, within 20 days of execution, defendants were to record a withdrawal of the *lis pendens* they had recorded on plaintiff's property. In the present motion, plaintiff contends that defendant has not recorded the withdrawal, as required. Defendants' opposition does not dispute this fact, but blames the plaintiff's counsel.

Specifically, the form of the withdrawal, which was drafted by plaintiff's counsel, was purportedly rejected by the Clerk-Recorder. In support of this contention, the opposition presents no supporting declaration or evidence to indicate reasons for rejection. In any event, the defendants do not dispute the authenticity of the settlement agreement attached to plaintiff's counsel's moving declaration.

On April 15, 2026, Judge Treat ordered that this hearing would proceed on a shortened time basis. In the Order, the Court noted that the opposition to the ex parte application did not appear to dispute plaintiff is entitled to the relief sought, and that the motion could be mooted by compliance with the terms. At the time of this writing, nothing has been submitted to indicate compliance.

I. Standard

Pursuant to Code of Civil Procedure, section 664.6:

If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

(Code Civ. Proc., §664.6(a).)

California courts have interpreted section 664.6 as creating “a summary, expedited procedure to enforce settlement agreements when certain requirements that decrease the likelihood of misunderstandings are met.” (*Elyaoudayan v. Hoffman* (2003) 104 Cal.App.4th 1421, 1429).

“Code of Civil Procedure 664.6 provides a summary procedure to enforce a settlement agreement by entering judgment pursuant to the terms of the settlement.” (*Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182 citing *Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 809.) “Section 664.6 states that if the parties to pending litigation enter into a settlement either in writing signed by the parties or orally before the court, the court, upon a motion, may enter judgment pursuant to the terms of the settlement.” (*Hines, supra*, 167 Cal.App.4th at 1182.)

“A court ruling on a motion under Code of Civil Procedure section 664.6 must determine whether the parties entered into a valid and binding settlement.” (*Hines, supra*, 167 Cal.App.4th at 1182, citations omitted.) “If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement.” (*Ibid.*)

“The statutory language makes clear, however, that a party moving for the entry of judgment pursuant to a settlement under Code of Civil Procedure section 664.6 need not establish a breach of contract to support relief under the statute.” (*Hines, supra*, 167 Cal.App.4th at 1185.) Instead, the Court is authorized to “enter a judgment pursuant to the settlement regardless of whether [a party’s] nonperformance of [their] settlement obligations [were] excused.” (*Ibid.*)

“[A] court’s power to make factual determinations under section 664.6 is generally limited to whether the parties entered into a valid and binding settlement agreement.” (*Viejo Bancorp, Inc. v. Wood*, (1989) 217 Cal.App.3d 200, 209 fn. 4 citing *Corkland v. Boscoe* (1984) 156 Cal.App.3d 989, 994.) The power to make such factual determinations does not extend “to whether one party had breached the terms of the agreement.” (*Ibid.*) “Judgment may be entered under section 664.6 whether the parties are complying with the terms of the agreement or whether they are not.” (*Ibid.*) Disputes regarding whether a

party breached the settlement agreement “are not relevant to the entry of judgment pursuant to section 664.6.” (*Machado v. Myers* (2019) 39 Cal.App.5th 779, 796.)

I. Analysis

Here, there appears to be no dispute concerning the existence of an agreement or the terms. That defendants are attempting to comply does not negate the merits of the motion. The Court does not, and cannot, make substantive determinations as to whether any party to the settlement has breached that agreement.

In reviewing Exhibit A to plaintiff’s counsel’s declaration, the Court finds that a valid settlement agreement was entered into between the parties “in a writing signed by the parties outside of the presence of the court,” and that such settlement agreement is sufficiently definitive to be enforceable. Accordingly, the Court grants the motion to enter judgment “pursuant to the terms of” the agreement.

**Law & Motion
Add On 3**

**17. 9:00 AM CASE NUMBER: C23-02945
CASE NAME: ARIANA MOORE VS. DOES 1-30, INCLUSIVE
HEARING ON SUMMARY MOTION JUDGEMENT HEARING / CONT'D FROM 4/24/26 PER TR
FILED BY: BIKRAMJIT S. RANDHAWA AS TRUSTEE OF THE RANDHAWA REVOCABLE TRUST, DATED
OCTOBER**

TENTATIVE RULING:

Before the Court is a motion for summary adjudication, or in the alternative summary adjudication of issues filed by defendants Bikram Randhawa, Schlatter Associates, Inc., Brigitte Schlatter, Bikramjit S. Randhawa as Trustee of the Randhawa Revocable Trust Dated October 2, 2015, and Dalbir K. Randhawa as Trustee of the Randhawa Revocable Trust Dated October 2, 2015. For the reasons set forth, the hearing on the motion is continued to **9:00 a.m. on May**

29, 2026 for supplemental briefing as set forth below.

Introduction

The moving parties are defendants who were added as "Doe Defendants" after Plaintiff's complaint was filed. All of the eleven causes of action in the complaint are alleged against all defendants.

There is no dispute that defendant Randhawa purchased the Property subject to the Lease Agreement, and that defendants the Randhawas through their Trust are the current owners of the Property and in effect successors under the Lease Agreement. (Defs. Sep. Stmt., UMFs 1, 2, 5, and Pl. Resp. to UMFs 1, 2, 5.) There also appears to be no dispute based on the evidence that defendant Schlatter and her company, defendant Schlatter Associates, Inc., acted as property managers and agents for the Randhawas as the property owners and landlords through their Trust. (Pl. Sep. Stmt. of Undisp. Mat. Facts [Addl. Facts] 28; Schlatter Decl. ¶¶ 2, 3, 5.)

A. Supplemental Briefing on Issues 1, 3 and 4

Issue 1 of the motion addresses in part the second cause of action for contractual breach of the implied warranty of habitability. Issues 3 and 4 address the third cause of action for breach of contract. These causes of action are founded on a lease agreement, a copy of which Plaintiff attaches as Exhibit A to her complaint. (Comp. ¶ 9 and Exh. A.) The Lease Agreement, Exhibit A, is between Plaintiff and Megem, LLC.

The parties' briefing cites the case *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903. That case addresses a number of different claims by a tenant against a landlord and property manager/agent for the landlord. The Court held that the tenant could state tort claims against the landlord's property management agents related to habitability but not contract claims since the agents were not parties to the contract with the tenant. (*Id.* at 928-930 ["We conclude that although the agent defendants may not be held liable under the implied warranty theory, causes of action may be stated against them in tort. Since the suit for breach of the implied warranty is essentially a contractual one, the trial court correctly ruled the agents could not be held liable on the breach of warranty because an agent is ordinarily not liable on the contract when he acts"])

on behalf of a disclosed principal [citation omitted]." (Emphasis added.)).) (See also *Aljabban v. Fontana Indoor Swap Meet, Inc.* (2020) 54 Cal.App.5th 482, 509 [holding there was no basis to hold president of defendant corporation liable for breach of contract to which the corporation was a party, stating "[A]lthough Aljabban named Shapiro as a defendant in the breach of contract cause of action, the vendor's permit was entered into by FISM as a corporate entity. Absent a successful attempt to pierce FISM's corporate veil—which Aljabban did not attempt to undertake at trial—Shapiro's role as FISM's president does not subject him to liability for FISM's breach of contract. [Citation omitted.]"; *Egan v. Mut. of Omaha Ins. Co.* (1979) 24 Cal.3d 809, 824 [reversing judgment against individual agents of insurance company for breach of the implied covenant of good faith and fair dealing, stating "Segal and McEachen acted as Mutual's agents. As such, they are not parties to the insurance contract and not subject to the implied covenant. Because the only ground for imposing liability on either Segal or McEachen is breach of that promise, the judgments against them as individuals cannot stand. [Citation omitted.]".])

The parties did not brief whether the second and third causes of action fail against Schlatter and Schlatter Associates because they are not parties to the contract on which those claims are founded. Nevertheless, the *Stoiber* decision cited in the briefing suggests that, based on the undisputed material facts, summary adjudication of those causes of action in favor of defendants Schlatter and Schlatter Associates may be warranted. Because the parties did not address the implications of the *Stoiber* decision for liability by Schlatter and Schlatter Associates as non-parties to the Lease Agreement and as mere agents for the landlord, the Court will continue the hearing to provide the parties an opportunity to address this legal issue pursuant to *Juge v. County of Sacramento* (1993) 12 Cal.App.4th 59. In *Juge*, the Court explained:

Consistent with the purpose of the summary judgment statute, we conclude that the trial court has the inherent power to grant summary judgment on a ground not explicitly tendered by the moving party **when the parties' separate statements of material facts and the evidence in support thereof**

demonstrate the absence of a triable issue of material fact put in issue by the pleadings and negate the opponent's claim as a matter of law. (*Cf. Cottle v. Superior Court* (1992) 3 Cal.App.4th 1367, 1377; *Weiss v. Chevron, U.S.A., Inc.* (1988) 204 Cal.App.3d 1094, 1098-1099; *Johnson v. Banducci* (1963) 212 Cal.App.2d 254, 260; *see also Bauguess v. Paine* (1978) 22 Cal.3d 626, 635.)

However, when the trial court grants a summary judgment motion on a ground of law not explicitly tendered by the moving party, due process of law requires that the party opposing the motion must be provided an opportunity to respond to the ground of law identified by the court and must be given a chance to show there is a triable issue of fact material to said ground of law.

Otherwise, a party which could have shown a triable issue of material fact put in issue by the complaint or answer but neglected to do so because the point was not asserted by the moving party as a ground for summary judgment would be deprived unjustly of the chance to demonstrate the existence of a triable issue of material fact which requires the process of trial.

(*Id.* at 70-71 [emphasis added].) (*See also Castillo v. Glenair, Inc.* (2018) 23 Cal.App.5th 262, 283 [trial court continued the summary judgment hearing to provide plaintiff additional time to address issue of agency first raised in defendant's reply brief which sufficiently protected plaintiff's due process rights].)

B. Supplemental Briefing on Issues 8, 9, 10, 11 and 12

These issues address Plaintiff's eighth, ninth, and eleventh causes of action which allege violations of Civil Code §§ 1946.2 (just cause eviction), 1947.12 (rent control statute governing rent increases), and 1942.5 (retaliation against tenant). Two of the statutes impose restrictions on "an owner of residential real

property." (Civ. Code §§ 1946.2(a) and 1947.12(a)(1).) Civil Code § 1942.5(a) restricts retaliatory conduct by "the lessor" against a lessee under the circumstances described in the statute. It is undisputed based on the facts that the Randhawas through their Trust are the owners of the Property and the lessors of Plaintiff's unit, and it appears to be undisputed that Schlatter and Schlatter Associates are property managers, not owners or lessors.

The Court requests supplemental briefing as to whether defendants Schlatter and Schlatter Associates, as property managers, have any liability for alleged violations of Civil Code §§ 1946.2, 1947.12, and 1942.5 in the eighth, ninth, and eleventh causes of action of the complaint when they are neither owners nor lessors of the Property. For the same reasons as Issues 1, 3, and 4, it appears that the undisputed material facts may indicate that defendants Schlatter and Schlatter Associates cannot be held liable as a matter of law for violations of the stated Civil Code statutes on which the eighth, ninth and eleventh causes of action are based. Supplemental briefing is therefore warranted under *Juge, supra*.

Supplemental Briefing Schedule

On or before May 8, 2026, the parties shall file and serve concurrently a supplemental brief not longer than seven pages together with any additional facts and evidence they contend are material to the issues for which the Court has requested supplemental briefing. **On or before May 15, 2026**, the parties may file and serve concurrently supplemental response briefs not longer than five pages addressing the other parties' supplemental briefing, and responses to any additional facts and/or evidence presented with the May 8, 2026 supplemental briefing. **The hearing is continued to May 29, 2026 at 9:00 a.m. in Dept. 32.**